

RULES AND REGULATIONS OF HARTSTENE POINTE AND THE ESTABLISHMENT OF PENALTIES FOR THE VIOLATIONS THEREOF, ADOPTED PURSUANT TO THE PROVISIONS OF ART VI 1. (a) OF THE BY-LAWS OF HARTSTENE POINTE MAINTENANCE ASSOCIATION AS RECORDED IN MASON COUNTY, WASHINGTON LAND RECORDS AND RCW 64.38.020 (1), (12), AND (14).

ABBREVIATIONS

BOD	Board of Directors
CC&R	Covenants, Conditions and Restrictions applicable to Hartstene Pointe
HPMA	Hartstene Pointe Maintenance Association
PRC	Permit Review Committee (previously Architectural Control Committee)
R&R	Rules and Regulations applicable to Hartstene Pointe

DEFINITIONS

"Association" means the Hartstene Pointe Maintenance Association, a Washington nonprofit corporation.

"Common Area" means all real property transferred to and held by the association for the use, enjoyment or benefit of the owners. The common area consists of all real property, which on the plat of each division of Hartstene Pointe and in the Covenants relating thereto, is identified as Common Area. All permanent structures and fixtures upon the Common Area, including particularly roads and utility systems, shall be deemed a part thereof.

"Covenants" refers to the restrictive and other covenants running with the land, which govern the use of land in Hartstene Pointe. The Covenants applicable to each division of Hartstene Pointe are incorporated in a document bearing the title "Declaration of Covenants, Conditions and Restrictions." The covenants applicable to the first division of Hartstene Pointe were recorded in the Mason County Land Records on August 7, 1970 under Auditor's Fee No. 253021.

"Director" - Owner elected to the Board of Directors.

"Hartstene Pointe" means the total land area on the north tip of Harstine Island in Mason County, Washington, which consists of: (a) The land area described and platted by that certain plat entitled "Hartstene Pointe" which Developer filed with Mason County Auditor on July 7, 1970 and which the said Auditor recorded under this Fee No. 252193 on page 80 to 85 of Plat Volume 8 of the Mason County Land Records, and (b) such other lands in Section 19 and 30 of Township 21 North, Range 2 West, Willamette Meridian (the north tip of Harstine Island) as may be added thereto by recording plats identifying the same as additions to Hartstene Pointe.

"Host", "Operator", or "Short-Term Rental Operator" means any person who receives payment for owning or operating a dwelling unit, or portion thereof, as a short-term rental unit.

"Landlord" means any person who receives payment for owning or operating a dwelling unit, or portion thereof, as a long-term rental unit.

"Long Term Rental (LTR)" is a stay of 30 or more consecutive days.

"Lot" means any interest in real property in Hartstene Pointe. The term includes all residential lots. It does not, however, include any part of the Common Area.

"Manager" means the association employee hired by the Board of Directors to be responsible for management and operation of the association in accordance with the CC&R's and policies as directed by the Board of Directors.

"Notice" may be notice given in person or notice given in writing by first class United States mail addressed to the lot owner at the address on file with the Association.

"Notice of Violation" means a written notice outlining an alleged violation of these Rules and Regulations, an associated fine, and appeal rights and process.

"Opportunity to be Heard" means affording a property owner a time and place of hearing on reasonable notice before a person or persons duly authorized to take evidence, allowing the property owner a reasonable period of time in which to present that evidence, including the evidence of any other person having reasonable knowledge of the occurrence or occurrences.

"Owner" refers to any owner, or any contract purchaser in possession of any lot.

"President" - President of the Board of Directors of Hartstene Pointe Maintenance Association

"Real Property" means all land and tidelands within the boundaries of Hartstene Pointe.

"Rules and Regulations" (R&R's means those rules adopted by the Hartstene Pointe Maintenance Association Board of Directors, consistent with other governing documents of the Association and applicable law, pursuant to RCW 64.38.120(1) and (6).

"Secretary" - Secretary of the Board of Directors of Hartstene Pointe Maintenance Association.

"Short Term Rental" (STR)" is a stay of less than 30 consecutive days.

"Patrol Officer" means any person over the age of twenty-one years designated as such by the Board of Directors.

"Sponsoring Lot Owner" means an owner responsible for the presence at Hartstene Pointe of any person by actual or implied invitation.

"Vehicle" means any carriage, conveyance or other artificial contrivance used or capable of being used as a means of transportation on land and water including, but not limited to, any motorbike, motorcycle, motor vehicle, bicycle, recreational vehicle, camper, golf cart, travel trailer, utility trailer, boat trailer, boat, kayak, canoe, etc.

RULES AND REGULATIONS

ARTICLE I

GENERAL

Section 1. PURPOSE. These rules and regulations ("Rules") have been established to ensure the maximum enjoyment of the neighborhood by all residents, protect the investment of the Lot Owner and make the neighborhood, as a whole, a place where owners take pride in the property.

Section 2. AUTHORITY. These Rules have been approved by the Board of Directors in accordance with the Washington State's Homeowners' Associations statute (RCW 64.38), the Association's Declaration of Conditions, Covenants and Restrictions ("CCRs") and Bylaws. These Rules and Regulations may be altered or amended by a majority vote of the Board at two successive regular meetings and/or special meetings at least two weeks apart and as defined in the HPMa Bylaws.

Section 3. APPLICATION OF THE RULES. These Rules are intended to augment, consistent with the other governing documents of Hartstene Pointe Maintenance Association and applicable federal, state, and local law, the authority of the Association to govern the Real Property of Hartstene Pointe and for the benefit of those who own Lots within the Real Property, their families, tenants, renters and guests. The governing documents of the Association in descending order of their

applicable authority are (1) The Articles of Incorporation; (2) Declaration of Covenant, Conditions, and Restrictions; (3) Bylaws; and (4) these Rules and Regulations. Any conflict among the governing documents shall be resolved in favor of the higher order document(s).

Section 4. PUBLICATION. A copy of the Rules shall be posted on the HPMA website and at the business office. Lot Owners may purchase copies of all governing documents. Owners are responsible for providing a copy to tenants, renters and/or guests.

Section 5. UNIVERSAL APPLICATION. All owners, tenants, guests, renters and pets are subject to these Rules. It is the responsibility of the owner(s) to notify tenants, renters and guests of these rules, and the owner shall be held responsible by the Board of Directors for actions of the tenants, renters and guests in violation of these rules including the payment of fines.

Section 6. PENALTY FOR VIOLATIONS. The violation of any provision of these rules and regulations shall make the person or persons committing the violation and/or the sponsoring lot owner liable for one or more of the following penalties and remedies:

- A. For the relief specifically set forth in the Bylaws and the Covenants, Conditions and Restrictions, and/or;
- B. For the actual amount of the loss caused by such violation, and/or;
- C. For penalty in accordance with the Schedule of Fines set forth in Table 1, and/or;
- D. For interest, costs and disbursements including reasonable Attorney's fees incurred in enforcing any of the provisions of this Article, and/or;
- E. Subject to suspension of voting rights and access denial to all common area and recreational facilities. (Except – access to private property.), and/or;
- F. For such other penalties and remedies as may be available under the laws of Washington and Mason County.

The remedies and penalties above may be cumulative.

Section 7. HPMA will not deny the property owner's right to access his/her private property via the common area gates, roads and driveways of Hartstene Pointe. Any Owner, who has had their right to use and enjoy the Common Area suspended, will be issued only one gate card – said gate card limited to provide access only to the owner's private property.

Section 8. COLLECTION: All amounts found to be due for violation of any of the provisions of this Article remaining unpaid for 30 days after written notice thereof by first class mail to the lot owner shall be subject to HPMA late fees and all remedies of collection available by law including but not limited to filing as a continuing lien upon the lot associated with the offending party until the entire sum is paid. Such lien, together with interest, costs and reasonable attorney's fee, if incurred, may also be the personal obligation of the person who was the lot owner at the time the violation was committed.

Section 9. ENFORCEMENT

- A. The Patrol Officer shall investigate, report and enforce any violations of these Rules and Regulations and the CC&R's. Reports shall comply with the structure and content established by the Manager.
- B. All HPMA employees shall report violations of these Rules and Regulations and the CC&R's to the Patrol Officer and/or Manager who will then investigate the report and enforce the Rules if needed.

- C. Lot Owners may report violations of these Rules and Regulations and the CC&R's to the Patrol Officer and/or Manager who will then investigate the report and enforce the Rules if needed.

Section 10. APPEALS. Pursuant to Article IX ("Interpretation, Administration and Enforcement of the CC&R's"), any Owner adversely affected by an action of the Board or the Architectural Control Committee (should one be appointed by the Board) may appeal the Board or Committee's decision as it applies to Article VI (Architectural Controls of the CC&R's) and/or Article III (Permit Review of the R&R's). Such appeals will be conducted as hearings are conducted under Article II, Section 2 of these Rules and Regulations.

ARTICLE II

Enforcement Protocol and Hearing Procedures

Introduction & Guiding Principles. All Owners of Lots within Hartstene Pointe are members of the Hartstene Pointe Maintenance Association ("Association"). By virtue of their ownership and membership, Owners are subject to the Association's "Governing Documents," which consist of the Declarations of Covenants, Conditions and Restrictions (Additions 1 – 10), the Bylaws, the Articles of Incorporation, and the Rules & Regulations, as any of those documents may be amended from time to time.

The Governing Documents similarly burden and benefit each Owner within Hartstene Pointe, and each Owner, their tenants, guests, agents, and contractors, is required to comply with the Governing Documents. Failure to comply may result in written or verbal warnings or demand(s) to comply and the issuance of fines. It may also result in legal action to recover sums due for damages or injunctive relief, or both, maintainable by the Board of Directors ("Board") on behalf of the Association or by an aggrieved Owner against the noncompliant party. Owners are responsible for ensuring their tenants, guests, agents, and contractors comply with the Governing Documents.

The Association is empowered by the Governing Documents and the laws of Washington to levy fines for violations of the Governing Documents. Before a fine is assessed, however, Owners are entitled to notice of the fine and Opportunity to be Heard. This Enforcement Protocol sets forth the process by which the Association will administer violations of the Governing Documents, including those that involve the levy of a fine.

Section 1. Procedures for Notice of Violations. If the Association receives information or observes behavior or conditions suggesting there has been a violation of the Governing Documents, the Association may, after reasonable inquiry into the circumstances surrounding the allegation, information, or violation, take the following actions:

A. First Violation: Warning Letter. Except as provided herein*, a violation of the Governing Documents will result in a written Warning Letter that continuing or future violations will subject the Owner to fines as set forth in the Association's Schedule of Penalties (Table 1 of the Rules and Regulations). Some situations may require immediate action on the part of the Owner, but unless otherwise provided in the Schedule of Penalties or the Warning Letter itself, Owners will have 30 days to correct the violation. Owners are responsible for their tenants and guests, and this includes a duty to inform the residents of their Lot, whether they be tenants, family members, guests, agents, contractors or the like, and to take action to correct.

*Violations identified within Table 1 of the HPMa Schedule of Penalties for Violations of the Rules and Regulations that do not provide for a warning shall be corrected within 30 days of date of notice and a proposed fine may be issued immediately. An example of such violations include but are not limited to performing/completing work without the required HPMa permit.

Violations determined to be especially serious, that cannot be corrected with a warning, or that would not be deterred by a warning, may be immediately subject to a Violation Letter and

Proposed Fine under Section B hereof. Examples of such violations include but are not limited to Cutting Common Area or other trees without permission, disposal of nonconforming garbage, breach of fire prevention rules including open fires or discharge of fireworks, driving at an excessive speed, and dog bites or attacks.

- B. Subsequent Violations: Violation Letter & Proposed Fine.** A second violation of the same or similar type or a violation not corrected within the time expressed in the Warning Letter (or a first violation in circumstances described under (*) above) is subject to a fine as provided in the Schedule of Penalties (Table 1 of the Rules). The Owner will be sent a Violation Letter providing the Owner with notice of the proposed fine or required corrective or other action, and an opportunity to be heard regarding the violation. No fine will be levied, however, until after an Owner has an opportunity for a hearing, as described below.
- C. Delivery.** Warning Letters and Violation Letters will be sent by mail to the Lot address unless an alternate address **has** been given in writing by the Owner to the General Manager of the Association prior to the date of the Notice of Violation. Certified Mail and email may but is not required to be used.
- D. Guests and Tenants.** Owners are responsible for their guests, tenants, agents, contractors, invitees or any other Lot occupant. If a non-Owner occupant of a Lot is in violation of the Governing Documents, the Association will send notices to the Owner at the address on file with the Association (or the Lot address if no other address has been provided) and may also notify the non-Owner occupant. The Unit Owner is ultimately responsible for notifying his or her tenants or other Lot occupants, paying any fines and taking corrective action. If a proposed action (other than a fine) would significantly affect the rights of a tenant or permanent resident, then the Association will also send Warning and Violation Letters to such person(s) at the Lot address if their identity is known (otherwise such notifications will be addressed to "Resident").

Section 2. Opportunity for Hearing. There are two scenarios where an Owner (or in certain cases a tenant or other non-Owner occupant) is entitled to a hearing: (1) when a fine is proposed for a violation, and (2) when an Owner is adversely affected by a Board or Architectural Control Committee action as it applies to Article VI (Architectural Controls of the CC&R's) and/or Article III (Permit Review of the R&R's). At Hartstene Pointe, the Board conducts enforcement and appeal hearings.

- A. Notice of Hearing.** The Violation Letter will provide the Owner with a notice of hearing before the Board regarding the violation or proposed action. The notice of hearing shall include (a) a description of the violation or offense, (b) a statement of the proposed fine and/or action required to correct, (c) the date, time, and place of the hearing, (d) any time limits upon the presentation of information, and (e) if the affected Owner may offer a written statement in lieu of in-person appearance. (Owners who appeal and request a hearing because they believe they have been adversely affected by a Board or an Architectural Control Committee action as it applies to Article VI (Architectural Controls of the CC&R's) and/or Article III (Permit Review of the R&R's). will be provided the information in (c) – (e) directly above.) The hearing will be scheduled no sooner than on the day and time of the first Board meeting that falls at least ten (10) days after mailing of the Violation Letter (or ten (10) days after receiving the request a request from an adversely affected Owner), and will not start before 9:00 a.m. or after 8:00 p.m. At the discretion of the Board, or as may be required by government order, proclamation, or health/safety consideration, hearings may be conducted virtually by videoconference or teleconference whereby all attendees can be heard simultaneously.
- B. Rescheduling of Hearing.** The Board (and manager) may, but is not required, to approve rescheduling a hearing at the request of the Owner. Requests to reschedule or postpone must be made in good faith, at least three (3) days before the hearing. One postponement will generally be granted if reasonable, but further postponements requested by Owner may only be

granted in special circumstances, as determined in the Board's sole discretion. Failure to appear at the hearing shall constitute waiver of the opportunity to be heard.

- C. Attorneys.** If the Owner intends to have an attorney present at the hearing, the Owner must notify the Association at least six (6) days prior to the hearing so that the Association may also have counsel present.
- D. Hearing Procedures.** At the hearing, the affected Owner (and resident, depending on the situation) shall have a reasonable amount of time under the circumstances to present evidence and argument to the Board, as the case may be, regarding the violation, proposed fine or any other related matter the Owner wishes to address. Specific time limits may be set out in the Notice of Hearing, but an Owner will have at least fifteen (15) minutes to address the Board. Additional time may be allowed by the Board. Presentation of information or arguments shall be subject to any reasonable rules of procedure established by, or determinations of, the Board to assure a prompt and orderly resolution of the issue. Other Owners, residents, friends, or those with knowledge of the issues will be provided a reasonable opportunity to address the Board, either for or against the proposed enforcement actions or fines, in accordance with procedures determined or established by the Board.
- E. Decision of the Board.** Within a reasonable time after the hearing, the Board may meet either in open meeting or, as allowed by statute, in executive session, to make its decision on whether the violation or action at issue will stand and/or whether the proposed sanction should be imposed in whole or in part. The Association shall endeavor to send the Owner notice of its decision in writing within thirty (30) days of the hearing (for Committee appeals, a conclusive determination shall be made by the Board within fifteen (15) days. Any fines imposed after a hearing shall be applied after the Board makes its determination and shall become due on the first day of the month that falls at least five (5) days after providing the notice of the decision unless the notice of decision states otherwise.
- F. Multiple Violations Prior to Hearing.** One or more violations of the Governing Documents and/or proposed fines may be combined and heard in one enforcement hearing, if convenient to the Board. Once a hearing is set for one or more alleged violations, additional alleged violations and fines occurring subsequent to the initial notice(s) of violations and prior to the date of the hearing may also be heard at the scheduled hearing, at the discretion of the Board.
- G. Additional Violations after Hearing.** An Owner is entitled to one hearing per type of violation in any six (6) month period. Additional hearings are not required for imposition of continuing fines for the same violation (e.g. ongoing daily fines for failure to correct improperly parked vehicle). A request for an additional hearing may be denied if the Board determines that the violations are the same or similar to those already considered at a hearing within six (6) months, or are continuing in nature, and that no evidence that could reasonably be presented by the Owner would change the previous decision of the Board.
- H. No Waiver / Not Exclusive Remedy.** The foregoing shall not be deemed a waiver of any right to enforce or take any other action available under the Governing Documents or at law. The sanctions and fines set out herein are in addition to, and not in lieu of, any right of the Association to require Owners to remedy violations of the Governing Documents, to charge members for fees and expenses as set forth in the Governing Documents, or to utilize any remedy available to the Association by law.
- I. Fines are Assessments.** Owners shall be financially responsible for all fines, damages and other amounts assessed resulting from their own actions, and the actions of their guests, tenants, agents, contractors, invitees or any other Lot occupant. Fines imposed under this protocol constitute Assessments under the Governing Documents and may be collected or enforced as such, including the recording and foreclosure of liens, imposition of late fees and interest, and a lawsuit seeking a personal judgment.

- J. Costs Incurred in Enforcement.** In addition to the fines set forth above, Owners may be assessed for all costs incurred in enforcing the Governing Documents, including, but not limited to, attorneys' fees, interest, recording fees and other costs incurred in collecting fines or attempting to obtain compliance with the Governing Documents.

ARTICLE III Architectural Control

Section 1. The requirements of CC&R ARTICLE VI of Hartstene Pointe and all additions are incorporated as rules and regulations herein.

Section 2. Permitting – As a general rule any work done on a Platted Residential Lot that adds a structure, changes the appearance of an existing structure, adds new landscaping or changes the appearance of existing landscaping requires a permit issued by HPMa, unless specifically defined in these Rules and Regulations as an exception.

No construction, landscaping work, tree cutting/trimming shall commence until the appropriate permit has been obtained from HPMa and prominently posted on job site.

A. Permits Specific to Platted Residential Lots:

Permits are required on Platted Residential Lots for all new construction, exterior remodel, vacant lot preparation for RV parking, drainage, decks, patios, roofing, sheds, fences, exterior lighting, propane tanks, heat pumps, generators, spa/hot tubs/saunas, firewood racks, parking a boat, landscaping (for developed and undeveloped lots) or any other work upon a Platted Residential Lot which materially changes or alters the exterior appearance of the structure(s) and/or landscaping. Owners shall submit applications and fees for permitting with the HPMa office. No work shall commence until a permit has been issued by HPMa and prominently displayed at job site.

1. **Permits required by other Jurisdictions:** HPMa requires that the Owner complies with all applicable codes and building requirements. Owner shall attach to the HPMa permit application a copy of any other pertinent permits required by code and other proper local governmental authorities (such as Mason County and/or Labor & Industries)", as a requirement for approval by HPMa.
2. **Performance Deposits:** Permits for new construction, major and minor addition/remodeling, vacant lot preparation for RV parking, building or remodeling of decks, sheds and fences require a performance deposit, which is refundable at completion of the job. A portion or all of the performance deposit may be retained for common area restoration, if not completed by the applicant.
3. **Hot Tubs/Spas:** Platted Residential Lot owners wanting to install or place a hot tub/spa within the boundaries of their Platted Residential Lot must apply for a permit. Due to the close proximity of lots to each other, recommendations by the PRC to the Board during the application process will use owner input in the decision process as to how it applies to the CC&Rs, Article VII, Land Use Restrictions, Section 14. **No Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners' or the Association's right to use and enjoyment of their respective properties.**
4. **Exceptions – Work which does not need permitting on Platted Residential Lots:**

At least 5 days prior to doing this work, a written notice must be filed with the HPMa office by filling out a "Non-Permit Work Notice". This is to provide a way to monitor the effectiveness of the provisions in this section. The "Non -Permit Work Notice" shall be signed by the HPMa office prior to the commencement of work. There will be no cost to file this notice.

Unless HPMA has notified the owner in writing that a previously approved structure is in violation of HPMA's current CC&Rs or Rules & Regulations, a permit shall not be required for:

- (a). Re-roofing home with same color and type of roofing materials.
- (b). Re-staining or repainting home, deck or fence with same materials colors and finish.
- (c). Minor additions such as window screens, screen door, gutters & downspouts that do not materially change the exterior appearance of a previously approved and constructed structure.
- (d). Installation of a satellite dish or TV antenna on the Owners Platted Residential Lot. (Note: Tree trimming for reception above 12' does require a permit.)
- (e). Trimming of Tree Limbs and Brush on Platted Residential Lot as defined in these Rules and Regulations, Article IV Land Use Restrictions, Section 19.A.2.

B. Permits Specific to Island Houses: No alternation of the exterior design, the exterior finish or the interior layout of any Island House may be made without first obtaining a HPMA permit. Permits are required for work on Island House Platted Residential Lots for all new construction, exterior remodel, interior remodel which changes the layout, drainage, decks (including the staining or painting of decks), patios, roofing and/or alterations (such as skylights or chimney installation), exterior lighting, integrated storage room, storage boxes, propane tanks, heat pumps, generators, firewood racks, landscaping or any other work which materially changes or alters the exterior appearance of the structure(s) and/or landscaping. Owners shall submit applications and fees for permitting with the HPMA office. No work shall commence until a permit has been issued by HPMA a prominently displayed at job site.

1. **Approved Contractors:** All Island House work shall only be done by a licensed and bonded contractor approved in advance by HPMA.
2. **Permits required by other Jurisdictions:** HPMA requires that the Island House Owner complies with all applicable codes and building requirements. Owner shall attach to the HPMA permit application a copy of any other pertinent permits required by code and other proper local governmental authorities (such as Mason County and/or Labor & Industries), as a requirement for approval by HPMA.
3. **Performance Deposits:** Permits for new construction, major and minor exterior addition/remodeling, interior remodeling, structural modifications and decks, require a performance deposit, which is refundable at completion of the job. A portion or all of the performance deposit may be retained for common area restoration, if not completed by the applicant.
4. **Hot Tubs/Spas:** Hot tubs/spas are not permitted on Island House decks. This includes, but is not limited to, tubs/spas being placed on top of decks, and/or modification to decks, or portions removed from decks, to allow installation of a tub/spa within or suspended by the deck.

Repair and/or replacement of Island House decks are the responsibility of HPMA as defined in the Island House CC&Rs. The decks as originally built do not meet weight requirements for Hot Tubs/Spas.

Island House owners wanting to install or place a hot tub/spa within the boundaries of their Platted Residential Lot must apply for a permit. Due to the close proximity of Island Houses to each other, recommendations by the PRC to the Board during the application process will use owner input in the decision process as to how it applies to the Island House

CC&Rs, Article VII, Land Use Restrictions, Section 15. **No Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners' or the Association's right to use and enjoyment of their respective properties.**

5. Exceptions – Work which does not need permitting on Island House Platted Residential Lots:

At least 5 days prior to doing this work, a written notice must be filed with the HPMA office by filling out a "Non-Permit Work Notice". This is to provide a way to monitor the effectiveness of the provisions in this section. The "Non -Permit Work Notice" shall be signed by the HPMA office prior to the commencement of work. There will be no cost to file this notice.

Unless HPMA has notified the owner in writing that a previously approved structure is in violation of HPMA's current CC&Rs or Rules & Regulations, a permit shall not be required for:

- (a). Interior work which is only cosmetic and does not include any structural work, new additional electrical circuits and/or new plumbing lines. Cosmetic work is defined, but not limited to, new floor coverings, interior paint or wall treatments, new light fixtures, new plumbing fixtures, cabinets and surfaces.
- (b). Re-staining or repainting house, shed, deck or with same materials colors and finish as originally permitted.
- (c). Minor additions such as window screens, screen door, gutters & downspouts that do not materially change the exterior appearance of a previously approved and constructed structure. Any damage to the structure due to the installation of these items is the responsibility of the Owner and specifically is not covered by the Associations' exclusive right and duty to provide adequate exterior building maintenance.
- (d). Installation of a satellite dish or TV antenna on the Island House Owners Platted Residential Lot. Any damage to the structure due to the installation of a satellite dish or TV antenna is the responsibility of the Owner and specifically is not covered by the Associations' exclusive right and duty to provide adequate exterior building maintenance. (Note: Tree trimming for reception above 12' does require a permit.)
- (e). Trimming of Tree Limbs and Brush on Platted Residential Lot as defined in these Rules and Regulations, Article IV Land Use Restrictions, Section 19.A.2.

C. Permits specific to Common Area: Permits are required for work by an Owner, or Contractor hired by Owner, on Common Area for cutting and/or trimming trees or brush, for any common area plantings, drainage work, rerouting a driveway and/or any other work in the common area. Owners shall submit applications and fees for permitting with the HPMA office. No work shall commence until a permit has been issued by HPMA and prominently posted on job site.

- 1. **Approved Contractors:** All Common Area work shall be done by a licensed and bonded contractor approved in advance by HPMA unless the permit specifically allows work to be done by the Owner. Work allowed to be done by the Owner may include some trimming or planting projects.
- 2. **Permits required by other Jurisdictions:** HPMA requires that the Owner complies with all applicable codes and building requirements for common area work. Owner shall attach to the HPMA permit application a copy of any other pertinent permits required by code and other proper local governmental authorities (such as Mason County and/or Labor & Industries), as a requirement for approval by HPMA.

3. **Performance Deposits:** Permits for common area drainage and re-routing a driveway require a performance deposit, which is refundable at completion of the job. A portion or all of the performance deposit may be retained for common area restoration, if not completed by the applicant.

4. **Exceptions – Work which does not need permitting on Common Area:**

At least 5 days prior to doing this work, a written notice must be filed with the HPMa office by filling out a "Non-Permit Work Notice". This is to provide a way to monitor the effectiveness of the provisions in this section. The "Non -Permit Work Notice" shall be signed by the HPMa office prior to the commencement of work. There will be no cost to file this notice.

(a). A permit shall not be required for common area trimming as defined in these Rules and Regulations, Article IV Land Use Restrictions, Section 19.B.3.(a)&(b).

(b). A permit shall not be required if an Owner wants to gravel common area driveway(s) at their expense.

E. Applicant/Owner Permit Change Requests

Applicants / owners may request changes to issued Minor Building permits and Multi Permit Maintenance and Repair (M&R) section permits. Changes must be submitted in writing, specifying change with accompanying reason for change. Change requests to be addressed to the Association's General Manager/office staff including the existing issued permit number. During the period of change request review all permit work related to change shall be suspended.

1. **Minor change requests:** an expedited review by the General Manager and one representative of the PRC committee. Change request decision to be completed within 7 calendar days from date of receipt. Approval requires approval by the General Manager or designate and the PRC committee representative.
2. **Major change requests:** reviewed by the PRC committee at their regularly scheduled monthly meeting. PRC recommendation will be reviewed and presented to the BOD at a regularly scheduled Board meeting. A final and conclusive determination shall be made by the BOD within 15 days after such meeting. During the time period of PRC review and BOD determination, all permit work shall be suspended (related to change). The permit will be valid for the duration as specified on the re-issued permit.

Section 3. Permit Process

A. Submittals of Permits

Permits shall be submitted to the HPMa office where they will be recorded. The recording date shall be the date received, not the date on the application.

The start date for the 45-day period for a response to a lot owner application required by the CC&R's is the recording date. A lot owner with a question about the official start date for their permit application should contact the HPMa office. The response period ends either:

1. 45 days after the date stamped on the application
2. On the date the Board of Directors approves or denies the application during that period.

B. Posting of Permits

All permit applications must be posted for a minimum of 10 days for community input prior to permits being issued. Permit applications shall be prominently displayed in the clubhouse and the HPMa website.

C. Permit Review Committee (PRC) and Board of Directors (BOD) review.

All permits submitted will be reviewed by the PRC. The PRC will meet once a month prior to the Board meetings to review permit applications, perform site visits, and make recommendations to the BOD. The PRC will present their recommendations once a month to the BOD at a regularly scheduled Board meeting. The BOD shall approve, approve with changes, or deny the permit application. This process shall be completed within 45 days of the recorded date of submittal of the permit application.

D. Issuance of Permit

The HPMA office will issue the permit as approved by the BOD. If the permit application was denied by the BOD, the HPMA office will notify the permit applicant of the decision and the reason for the decision. The permit is valid for the duration as specified on the permit.

E. Applicant/Owner Permit Change Requests

Applicants / owners may request changes to issued Minor Building permits and Multi Permit Maintenance and Repair (M&R) section permits. Changes must be submitted in writing, specifying change with accompanying reason for change. Change requests to be addressed to the Association's General Manager/office staff including the existing issued permit number. During the period of change request review all permit work related to change shall be suspended.

3. **Minor change requests:** an expedited review by the General Manager and one representative of the PRC committee. Change request decision to be completed within 7 calendar days from date of receipt. Approval requires approval by the General Manager or designate and the PRC committee representative.
4. **Major change requests:** reviewed by the PRC committee at their regularly scheduled monthly meeting. PRC recommendation will be reviewed and presented to the BOD at a regularly scheduled Board meeting. A final and conclusive determination shall be made by the BOD within 15 days after such meeting. During the time period of PRC review and BOD determination, all permit work shall be suspended (related to change). The permit will be valid for the duration as specified on the re-issued permit.

F. Permits – Appeals

1. Appeals by Neighboring Owners/Owners in General:

The Permit Review Committee (PRC) will post their permit actions/recommendations to the Board by way of their meeting minutes in the Clubhouse and on the HPMA website within 5 days of their monthly meeting. Any owner who may be adversely affected by the proposed permit actions/recommendations of the PRC may submit his/her objections in writing to the Board of Directors (BOD) no later than 10 days following the posting of the PRC minutes. The written appeal shall set forth the part of the PRC's action deemed objectionable. The appeal shall be considered by the BOD at its next scheduled meeting in accordance with ARTICLE IX of the CC&R's. A final and conclusive determination shall be made by the BOD within 15 days after such meeting. Prior to the meeting, the Association Manager shall invite the objecting owner to be present to further explain their opinion and to answer questions which the BOD may have regarding the appeal.

2. Appeals by the Applicant:

If a permit is denied or approved with changes that differ from the application the Applicant Owner may appeal the decision of the Board of Directors (BOD). Appeals shall be made in writing within 10 days of the issuance of the permit or receipt of the letter of denial, stating the reason for the objection, the requested remedy and why the Applicant Owner may have been adversely affected by the decision. The appeal shall be considered by the BOD at its next scheduled meeting in accordance with ARTICLE IX of the CC&R's. A final and conclusive determination shall be made by the BOD within 15 days after such meeting. Prior to the

meeting, the Association Manager shall invite the objecting owner to be present to further explain their opinion and to answer questions which the BOD may have regarding the appeal.

3. Hazard Tree Appeals

In the event of disagreement between the Manager and/or the Board of Directors and an Owner regarding the advisability of removing a tree on account of hazard, an independent, unbiased arborist/forester, as specified in the Hazard Tree Policy, may be retained at the Owner's expense. The arborist's findings shall be considered by the Board of Directors during appeal procedures specified in CC&R ARTICLE IX Section 1. The owner may engage the services of the arborist/forester normally retained and deemed qualified by HPMA.

Section 4. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article 1 of these Rules & Regulations.

ARTICLE IV Land Use Restrictions

Section 1. The requirements of CC&R's ARTICLE VII of Hartstene Pointe and all additions are incorporated as rules and regulations herein except:

- A. In Section 2 (CC&R Art. VII), replace "central community water system to be installed by Declarant" with "Hartstene Pointe Water Sewer District."
- B. In Section 3 (CC&R Art. VII), replace "central community sewer system to be installed by Declarant" with "Hartstene Pointe Water Sewer District."

Section 2. Permit Responsibility: Owners are responsible for obtaining any and all required permits per CC&R Article VI and per these Rules Article III. No work which requires a permit shall commence until a permit has been issued by HPMA and posted on the jobsite.

Section 3. Board Approval Process: For any building restrictions, requirements, and/or special permissions needing approval of the Board of Directors per the CC&R's Article VIII the process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

Section 4. Common Area Restrictions:

- A. "Common Area" means all real property transferred to and held by the association for the use, enjoyment or benefit of the owners. All permanent structures and fixtures upon the Common Area, including particularly roads, structures, recreational facilities and trail system, shall be deemed a part thereof.
- B. Owners shall use the common area for its intended purpose. Owners shall not encroach or use common area for any storage except as specifically allowed by these Rules.
- C. Owners shall not modify common area or its improvements without a permit except as specifically allowed by the CC&R's and these Rules. Examples of modifications which are not allowed include, but are not limited to, adding reflectors to common area, installing signs, or screwing in hooks or hammering in nails into common area structures.

Section 5. Signs and Flags

A. Signs and Flags – Types and Size Restrictions:

- 1. **Signs:** A Three square-foot sign identifying the names of owner/residents and a six square-foot sign for property sale purposes are allowed on homeowner's property and defined in

2. **Flags:** Flags may be no larger than 3' tall by 5' wide. Flags which may be displayed are the United States flag and/or flags of other nations. All other types of flags, such as but not limited to, sports oriented, political (except as defined in these Rules) and or banners in general are not permitted.
- B. **Political Signs:** Political yard signs are allowed in accordance with RCW 64.38.034, provided they are placed on a homeowner's property no more than two weeks in advance of a primary election and/or four weeks in advance of a general election. Such signs must be removed within a week following each election. Banners and/or flags which are political shall be defined as a political sign and shall conform to this rule.
- C. **Signs or Flags on Common Area:** No owner signs, banners or flags are allowed on common area, except open house signs or garage/yard sale signs which may be placed on road shoulder only when the home is for sale or during the garage/yard sale. An owner/sales representative needs to be at the residence. Open Houses and Yard Sales should be no longer than 6 hours in duration. Other signs may be temporarily posted only when approved in advance by the Board of Directors.
- D. **Flags displayed on Owner's Platted Residential Lot:**
 1. **Flags - State Law:** Washington State RCW 64.38.033 states that (1) Homeowner's Association governing documents may not prohibit the outdoor display of the flag of the United States by an owner or resident on the owner's or resident's property if the flag is displayed in a manner consistent with federal flag display law, 4 U.S.C. Sec. 1 et seq. The governing documents may include reasonable rules and regulations, consistent with 4 U.S.C. Sec. 1 et seq., regarding the placement and manner of display of the flag of the United States. (2) The governing documents may not prohibit the installation of a flagpole for the display of the flag of the United States. The governing documents may include reasonable rules and regulations regarding the location and the size of the flagpole. (3) For purposes of this section, "flag of the United States" means the flag of the United States as defined in federal flag display law, 4 U.S.C. Sec. 1 et seq., that is made of fabric, cloth, or paper and that is displayed from a staff or flagpole or in a window. For purposes of this section, "flag of the United States" does not mean a flag depiction or emblem made of lights, paint, roofing, siding, paving materials, flora, or balloons, or of any similar building, landscaping, or decorative component.
 2. **Flag Permitting:**
 - (a). **Temporary Displays:** Permitting is not required for flags displayed on a temporary basis for national holidays.
 - (b). **Permanent Displays:** Flags which are displayed on a flag pole and/or on a permanent basis shall be permitted. Flag poles shall be no more than 20' tall measured from ground level. Flag pole lighting is not permitted. The permit application and approval process will define location, height and size. View corridors will be a factor for site location.

Section 6. Garbage: No garbage, rubbish, refuse or other unsightly litter, trash, or debris may be stored, dumped, or piled on common property or platted lots.

Dumping of trash or debris over the bank onto shoreline areas is prohibited. Causing or allowing the disposal of any waste material (processed lumber, plastics, cloth, metal, glass or any other non-natural trash or debris) onto the common area or greenbelt is prohibited.

Section 7. Garbage Service: Owners may dispose of garbage and trash into containers located in the parking lot adjacent to the clubhouse subject to the following rules:

- A. **Conforming household garbage** - may be disposed of at no charge and is included in the yearly assessments. Conforming household garbage is defined as normal solid waste comprised of **garbage** and rubbish generated from day-to-day residential use, such as bottles, cans, compost, disposables, food packaging, food scraps, newspapers and magazines that originate from private homes.
- B. **Non-conforming household garbage** - may be disposed of for an additional fee during normal HPMA business office hours. Before disposing of non-conforming material, go to the office and an HPMA employee will view the material being thrown away and calculate a fee for disposal. Fees are set by the Board of Directors. Non-conforming household garbage is defined as: large or bulky items such as appliances, furniture, large pieces of wood or metal, tires/rims and other items which are not routinely disposed on a daily basis.
- C. Leaving any and all material outside the dumpsters is prohibited. HPMA garbage area is not a donation site.
- D. Construction material and large amounts of dirt or rocks cannot be disposed of in HPMA garbage containers.
- E. Hazardous waste of any kind is prohibited. Hazardous waste includes, but is not limited to, TV's/computer monitors, oil-based paints, paint thinners, fertilizers, automotive products, fluorescent tubes or bulbs, flammable liquids, household cleaners, pesticides, aerosols, small propane bottles, propane tanks, fire extinguishers, pool or spa supplies, antifreeze, auto & marine batteries or NiCad & lithium batteries.
- F. If Recycling containers are provided, recycling material should be cleaned and sorted into proper recycling containers for bottles, cans, cardboard, newspaper, magazines, and miscellaneous paper.
- G. No garbage or trash generated or collected outside Hartstene Pointe may be deposited in these containers.
- H. Any violation of any of the provisions of this section shall be deemed a violation subject to the enforcement provisions of ARTICLE I and subject to fines per Table 1.

Section 8. Drainage: No Owner shall change or interfere with the natural drainage of the Real Property and/or Common Area without the prior written approval of the Board of Directors. The process for granting permission is to apply for a permit for PRC review per Article III of these Rules. The PRC will review the location and topography and make a recommendation to the Board of Directors based on the following:

- A. All new Construction and Major Remodels shall include a drainage plan.
- B. Any changes to existing drainage systems shall require a permit.
- C. Drainage shall be designed to direct water to ditches or existing drainage areas approved by HPMA and will not contribute to drainage and or water problems for other Platted Residential Lots or to the Common Area.
- D. Preferred drainage shall be a tight line design to the HPMA road ditch drainage system, or in the case of bluff properties, the tight line shall be over the bluff to the beach. Current Mason County code requirements shall apply.

- E. Any and all damage to the Common Area during installation or repair of the drainage system shall be restored by the Owner and/or Contractor.

Section 9. Common Area Parking: No vehicles shall be parked or stand on common areas with the exception of designated HPMA parking lots. The road is defined as designated parking as long as the vehicle is not blocking traffic or blocking access to driveways. Vehicles shall remain on the asphalt surface and shall not park on the grass shoulder.

- A. RV's, travel trailers, boat trailers, utility trailers and similar vehicles may be parked in designated parking on a temporary basis, provided a permit is issued by the Patrol Officer or the business office, and must be displayed on the vehicle. Granting of a temporary parking permit for RV's and trailers is for loading and unloading purposes or if no other parking is available. Trailers must be hitched to the vehicle while parked on the roads unless specifically instructed differently by Patrol Officer or the Office.
- B. Vehicles, including RV's, travel trailers and boats shall not be occupied or used as a residence while parked on common area.
- C. The use of extension cords from a residence over common area land to a vehicle, including RV's, travel trailers and boats is prohibited.
- D. No vehicle may be parked in a designated parking lot for more than 72 hours, excepting only boats, boat trailers, RVs and utility trailers stored in accordance with these rules in storage areas specifically designated for them.
- E. No vehicle in disrepair (inoperable) may be parked on any common area for more than 48 hours.

Any vehicle in violation of these rules including any vehicle parked on any common area or believed to be a hazard to vehicle or pedestrian traffic may be removed via a Washington licensed vehicle towing company, by Patrol/The Manager. Owners are responsible for their tenants, guests and family members. The costs of removal shall be assessed against the property owner.

Section 10. Common Area Storage: Designated Common Area RV, Boat, Utility Trailer, Kayak and Canoe Storage are all defined as Vehicles per the Definitions of these Rules.

A. Storage Areas designated as:

1. Water Tower Storage

- (a) For RV Storage and Utility Trailer Storage. Boats may be stored in this area if approved by the Manager. RV's and Utility Trailers on the wait list receive first priority at renewals.
- (b) Storage space is for exclusive use and location is assigned by Patrol or the office.

2. Boat Launch, PDE/Chesapeake South, and PDE North Storage

- (a) For Boats
- (b) Storage space is for exclusive use and location is assigned by Patrol or the office.

3. Various Locations for Kayak and Canoe Storage.

- (a) Storage space is for exclusive use and location is assigned by Patrol or the office.

B. Use of designated storage requires a lease agreement (Storage Registration Form), payment of

a fee, and application of permit sticker to stored item.

1. Fees are set by the Board of Directors.
2. There will be a one-time permit processing fee for owners applying for an initial permit. This processing fee will not be applied to renewals.
3. Lease Terms are defined in these Rules, Article XII, Section 5.
4. It is a violation to not apply storage permit to stored vehicle.

C. Stored vehicles shall:

1. Be actively used and in good working order (Storage is not intended for derelict non-functioning vehicles).
2. Shall have a current State license if applicable to the stored vehicle.
3. Tarps or Covers which encompass the entire vehicle shall be brown, dark green, grey or camouflage. Bright blue, bright green, silver or other bright colors are prohibited. Boat covers that are manufactured to only cover the cockpit/window areas may be a color that is made to match or complement the boat.
4. Owner is responsible for keeping the stored vehicle free from standing water to prevent mosquito habitation. A service fee may be charged if HPMA employees are required to constantly drain puddled water from a stored vehicle.
5. Stored vehicles found in violation of this Section C will receive notice by certified mail and will have 30 days from date of notice to cure.

D. Any stored vehicle in violation of these rules may be removed via a Washington licensed towing company, by Patrol or the Manager. Owners are responsible for their tenants, guests and family members. The costs of removal shall be assessed against the property owner.

Section 11. Storage of RV's on Platted Residential Lots: RV's, travel trailers and similar vehicles may not be permanently stored on Platted Residential Lots.

A. Developed Lots:

1. RV's and travel trailers may be parked for no more than 72 hours, for loading and unloading on developed Private Lots with a temporary parking permit issued by the Patrol Officer or the business office.
2. RV's, travel trailers and boats shall not be occupied or used as a residence while parked on private lots.

B. Undeveloped Lots:

1. RV's or travel trailers may be parked on Private undeveloped lots for the Owner's vacation use for a period not to exceed two weeks per year and on weekends and holidays as defined in the CC&R's Article VII, Land Use Restrictions.
2. For parking on undeveloped Platted Residential Lots a permit is issued by the Patrol Officer or the business office and must be displayed on the vehicle.
3. Self-contained RVs and RVs used on Private Lots may be connected to the sewer collection system provided the owner obtains a permit under Article III and Article XIV, of these Rules.

Section 12. Storage of Boats, Boat Trailers and Utility Trailers on Platted Residential Lots:

A. Developed Lots:

1. Permanent Storage: Boats, Boat trailers and Utility Trailers may be parked or stored on Platted Residential Lots with the written permission of the Board of Directors. Owners are first encouraged to store the boat or utility trailer in designated common area storage per Section 10 above, subject to availability. Permanent storage is limited to only one Boat (with or without trailer) or one Utility Trailer on a Private Residential Lot. Parking of multiple trailers on a permanent basis is prohibited. The process for granting permission is to apply for a permit for PRC review per Article III of these Rules. The PRC will review the location and screening and make a recommendation to the Board of Directors based on the following:
 - (a) The stored boat (with or without trailer) or utility trailer shall be screened as defined in Section 17 below.
 - (b). All permit applications must be posted for a minimum of 10 days for community input.
 - (c). The PRC shall post copies of all approved permits in the clubhouse.
 - (d). The stored boat (with or without trailer) or utility trailer may be temporarily parked on the owner's lot without a permit as long as a permit application has been submitted to the office and awaiting the PRC review and the BOD decision. If the permit application is denied the boat (with or without trailer) or utility trailer shall be removed from the owner's lot within ten days of receipt of notice by the HPMA office.
 - (e). Any violation of any of the provisions of this section shall be deemed a violation subject to the enforcement provisions of ARTICLE I and subject to fines per Table 1.
2. Temporary Storage: Boats (with or without trailers) or utility trailer may be parked for no more than 72 hours, for loading and unloading on developed Private Lots with a temporary parking permit issued by the Patrol Officer or the business office.

- B. Undeveloped Lots:** Boats (with or without trailers) or utility trailers shall not be stored on undeveloped Private Lots.

Island House parking is not on a Platted Residential Lot. The Board of Directors shall not grant permission to park or store boats or utility trailers on Island House common area parking.

Section 13. Storage of Kayaks on Platted Residential Lots:

A. Developed Lots:

1. Permanent Storage: Kayaks may be stored on Platted Residential Lots without a permit if not visible from neighboring lots or common area when stored behind a fence, under a deck or screened (as defined in Section 16, A & B below). Tarps are not a method of screening. Storage of kayak(s) that will permanently be visible from neighboring lots or common area requires the written permission of the Board of Directors and shall be limited to no more than two kayaks located on an exterior wall of the primary residence, garage or shed. Owners are first encouraged to store the kayak in designated common area storage per Section 6 above, subject to availability. The process for granting permission is to apply for a permit for PRC review per Article III of these Rules. The PRC will review the location and community input when making a recommendation to

the Board of Directors.

(a). All permit applications must be posted for a minimum of 10 days for community input.

(b). The PRC shall post copies of all approved permits in the clubhouse.

(c). The kayak(s) may be temporarily stored on the owner's lot without a permit as long as a permit application has been submitted to the office and awaiting the PRC review and the BOD decision. If the permit application is denied the kayak shall be removed from the owner's lot within ten days of receipt of notice by the HPMA office.

(d). Any violation of any of the provisions of this section shall be deemed a violation subject to the enforcement provisions of ARTICLE I and subject to fines per Table 1.

B. Undeveloped Lots: Kayaks shall not be stored on undeveloped Private Lots.

Section 14. Fuel Tanks on the Common Area: No fuel tanks of any kind shall be located on the common area. (See CC&R Article VII Section 12.)

Section 15. Use of Tents: Tenting is prohibited on any platted residential lot or any portion of the common area including Shade/Event tents except as provided herein. Tents that are allowed:

1. Temporary use of Shade/Event tents may be used at the spit and immediate surrounding tidelands if being actively used. These tents may not be larger than 10 feet by 10 feet and may not be enclosed on all sides. The tents shall be removed when not in use and cannot remain in place after dark. Tents shall not obstruct traffic and/or parking at the Spit. These tents shall not be used to save space and will be removed by HPMA if found unattended for more than 30 minutes.
2. Awning and Sail canopies permanently installed on owner's platted residential lot is permitted only if they serve a functional purpose, such as providing shade, rain protection or screening and should be located within the perimeter of the deck or patio and shall not extend into landscaping or common area and are not intended for decorative purposes. Awning and Sail Canopies shall tend to grays, gray-greens, and browns and/or be in a complementary color range as the primary residence. These may be installed only with the written permission of the Board of Directors. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

Section 16. Propane Tanks on Platted Residential Lots: Propane tanks installed on a Private Lot require permits issued per Article III of these Rules for both by HPMA and Mason County. The tank(s) shall be screened as defined in Section 16 below.

Section 17. Screening and Tarps:

A. Boats (with or without trailers), utility trailers, kayaks and propane tanks stored on platted lots shall be screened with plantings, fencing, or a combination of these where they might otherwise be viewed from the Common Area or nearby platted lots. Lattice is not acceptable. Tarps shall not be a method for screening boats (with or without trailers), utility trailers or kayaks.

While tarps shall not be considered a method for screening boats (with or without trailers) or utility trailers, if they have been permitted and approved for storage on Platted Residential Lots owners may use tarps or covers to protect the boat or trailers. Tarps or covers which encompass the entire boat (with or without trailer) or utility trailer shall be brown, dark green, grey or camouflage Bright blue, bright green, silver or other bright colors are prohibited. Boat covers that are manufactured to only cover the cockpit/window areas may be a color that is

made to match or complement the boat.

- B. **Screening shall** be of sufficient height and density to obscure and substantially surround, but not necessarily to block views of the object being screened. Screening shall be placed on or inside the property line unless specific HPMA approval is given for plantings in the Common Area. Plantings shall be of materials acceptable to HPMA.
- C. **Tarps used to cover firewood** on owner's property must be brown, dark green, grey or camouflage. Bright blue, bright green, silver or other bright colors are prohibited.
- D. **Tarps used during construction** or for permitted work on owner's property must be brown, dark green, grey or camouflage. Bright blue, bright green, silver or other bright colors are prohibited.
- E. **Tarps used for emergency purposes** on owner's property may be any color but must be removed within 30 days. In the event that repairs cannot be completed within 30 days and tarps are still required, then the tarps must be brown, dark green, grey or camouflage. Bright blue, bright green, silver or other bright colors are prohibited after 30 days. Emergency repairs should be completed within 90 days. Tarps may not be used for emergency repairs beyond 90 days without the written permission of the Board of Directors.

Section 18. Landscaping on Platted Residential Lots

- A. **Permitting:** All landscaping, or modifications to existing landscaping, which changes the appearance of a developed or undeveloped private lot requires a permit issued by HPMA per Article III of these Rules.
- B. **Definition:** Landscaping shall be defined as, but not limited to, the work to improve the appearance of a privately owned lot as by planting or removing trees, shrubs, groundcover or grass, or adding beds for vegetation, or installation of stone, gravel, concrete or asphalt, or altering the contours of the ground.
- C. **General Guidelines for Landscaping:** Hartstene Pointe is a planned community based on a natural environment harmonious with the existing vegetation native to Hartstene Pointe. Landscaping should be designed to blend and/or complement the natural environment of Hartstene Pointe. The following are guidelines for the design, installation and maintenance of landscaping on private lots:
 - 1. **Vegetation:** Trees, hedges, shrubbery, groundcover, grasses or other plants shall be native, or be complementary, to vegetation natural to Western Washington.
 - 2. **Protection of neighbor's view and screening:** No trees, hedges, shrubbery, or other plants exceeding six feet in height shall be placed or planted on any Platted Residential Lot, nor shall any such planted tree, hedge, shrub or other plant be allowed to grow to a height in excess of six feet and have a screening effect without the written approval of the Association's Board of Directors. The process for granting permission is to apply for a permit for PRC review per Article III of these Rules. Approval will be contingent on no objections from neighboring lots or other owners.

The potential problem of vegetation height limit of six feet in the CC&Rs shall be resolved as follows: The complaining party must follow standard HPMA procedure to file a formal complaint with the Board of Directors to identify a violation and request a resolution. In addition, the formal complaint must identify each particular unit of vegetation, with sufficient detail regarding each individual tree or bush/shrub to enable reasonable identification of the vegetation, and the complaint must include facts establishing that the vegetation was "placed" or "planted," and the approximate date of such "placing" or "planting." The Board shall hear the complaint at the next regularly scheduled meeting, and

the ruling of the Board shall be final.

3. **Removal of existing trees:** Trees greater than three inches DBH (diameter at breast height – 4 ½ feet) shall not be removed unless the owner can show evidence of:
 - (a.) Tree must be removed due to footprint of new construction
 - (b.) Root damage associated with construction excavation
 - (c.) Proximity to structure or other trees
 - (d.) Excessive mold on a structure
 - (e.) Desire for more light
 - (f.) Desire for improved view
 - (g.) Excessive risk/hazard to residence
 - (h.) Diseased or damaged trees
4. **Stone:** Stone may be used for retaining walls and for landscape accents.
5. **Synthetic Stone, Retaining Walls or Pavers** are allowed and encouraged in lieu of concrete or asphalt.
6. **Gravel:** Gravel shall be used primarily for driveways and parking areas. Black Basalt is preferred.
7. **Concrete:** Use of Concrete shall be limited to patios, walkways, under open carports and may extend 3 feet in front of garage doors. Concrete shall not be used for an RV pad.
8. **Asphalt:** Asphalt shall only be allowed for steep driveways when gravel will not provide sufficient traction or when gravel will erode due to a steep grade.
9. **Hardscapes in the Five-Foot Setback, if applicable:** Refer to Article V, Section 6 of these Rules.
10. **Artificial Turf:**
 - a. "Artificial Turf" refers to synthetic grass made from plastic fibers designed and installed to resemble natural grass. It does not mean door mats or mats on decking or patios.
 - b. Unless approved and installed prior to this rule, artificial turf shall not be installed, replaced, or maintained in any common area or on private platted residential lots. Once existing artificial turf has reached the end of its useful life, it shall be discarded and shall not be replaced with artificial turf.
 - c. Exceptions
 - i. Temporary installations for events, provided they are removed promptly after the events conclusion.
11. **Non-natural/Synthetic Landscaping:**
 - a. "Synthetic plant materials" refer to artificial or man-made replicas of plants, including but not limited to plastic foliage, faux flowers, etc.
 - b. The use of synthetic plant materials in landscaping, fencing or screening is not allowed in any common area or on private platted residential lots.
 - c. Exceptions
 - i. Can be used in planters and pots on decks or patios.

- ii. Temporary installations for events, provided they are removed promptly after the events conclusion.

Section 19. Clearing Private Platted Residential Lots: Private lots shall not be cleared, including the five foot setback, except with the written permission of the Board of Directors. The process for granting permission is to apply for a permit for PRC review per Article III of these Rules.

- A. Undeveloped Lots shall not be cleared until a permit has been issued for the construction of a new residence or the vacant lot preparation for RV parking.
- B. RV parking pads shall be limited to gravel surfaces (asphalt or concrete is not permitted).
- C. Exceptions may be granted for permit applications to correct defects of a vacant lot for sales and marketing purposes.
- D. Trimming of vegetation may be performed on undeveloped lots as defined in Article IV, Section 19 below of these Rules.

Section 20. Management/Maintenance of Vegetation on Private Lots and Common Areas

NOTE. Policy governing HPMA management of common area hazard trees can be found in Policy 4.04 in the HPMA Policy Manual.

No vegetation shall be planted, cut or damaged without the written permission of the Board of Directors except as provided in the sub-sections of this regulation and in accordance with the rules herein and within the specifications of the approved permit. (See Articles VI, VII and VIII of the CC&Rs)

- A. **For Platted Residential Lots:** Rules and permit application requirements for the maintenance of vegetation on Private Lots.

- 1. **Private Lot Actions regarding maintenance of vegetation/landscaping which require a permit:** All landscaping or modifications, including the removal of existing landscaping on private lots, which changes the appearance of the developed or undeveloped lot requires a permit issued by HPMA per Article III of these Rules except as defined in Section 19.A.2. below. This includes trimming for satellite reception above 12 feet in height.
- 2. **Private Lot actions regarding maintenance of vegetation/landscaping which can be taken without a permit:**

The requirement of CC&R Article III and Article VI of these Rules to obtain permission of HPMA prior to landscaping work, including the removal of natural trees, shrubs, brush and other ground cover, shall not be construed to apply to the following actions:

- (a). Dead trees and/dead vegetation may be removed from a private lot.
- (b). The lower 1/3 (one-third) of a private lot tree may be limbed up to a maximum of 12 (twelve) feet above the ground.
- (c). Trees growing on a private lot, on the inner side of the 5-foot setback line, and having a diameter of 3 inches or less as measured at a height of 2 feet from the ground may be removed.
- (d). Trimming and/or limbing of trees on private property to keep vegetation a distance of 10 feet from the side or roof of any structure or 18 feet from any chimney or stove pipe.

- (e). Trimming and/or limbing to keep vegetation 12 feet above designated parking areas or graveled paths to Island Houses.
- (f). General ongoing maintenance of established landscaping on the private lots as it applies to shrubbery, grasses, and decorative plants. Shrubs or brush which grows taller than three feet may be trimmed to a height not less than 3 feet above the ground without a permit. Lawns shall be mowed at reasonable intervals.

B. For Common Area: Common Area Rules and Permit Application Requirements – Pertaining to the Requests to Remove/Limb/Trim or Plant Vegetation in the Common Area.

1. Actions which require a permit. A property owner must apply to the HPMa per Article III of these Rules to remove, trim, limb or plant vegetation in the common area for all common area work such as:

- (a). View preservation: To trim, limb and/or remove if necessary vegetation to maintain and/or establish the applicant's view in accordance with section 2 below.
- (b). Satellite reception: To allow sufficient limbing to enable single window satellite reception. *

*** Expedited Permit for Re-trimming the Same Location for a Satellite Reception That Was Previously Permitted.** For Satellite trimming that has been previously approved by HPMa the lot owner may request expedited processing which requires up to five business days to process prior to receiving a new permit. The HPMa Office can approve the expedited permit for re-trimming for Satellite reception without PRC recommendations and Board approval. Any such trimming shall not exceed the trimming approved by the previous permit.

- (c). To add vegetation: To add to the Common Area to enhance screening and/or bank stabilization.
- (d). To trim vegetation and tree branches to reduce laddering fuels for improved fire safety. **Ladder fuels** are fuels which provide vertical continuity between strata, thereby allowing fire to carry from surface fuels into the crowns of trees or shrubs with relative ease. They help initiate and assure the continuation of crowning. **Crown fire (Crowning)** is the movement of fire through the crowns of trees more or less independently of the surface fire.

- 1. Permit is limited to the common areas immediately adjoining an applicant's lot.
- 2. Owner must obtain neighbor agreement prior to permit application submittal.
- 3. Owners are responsible for costs of the project including debris removal.
- 4. Adequate separation of hanging tree branches and ground vegetation should be between 8' and 12'.
- 5. Results of the trimming work needs to look natural.
- 6. Trimming work needs to avoid creating hedges. Trimmed height of understory vegetation depends on terrain, house location, and the need to create an adequate separation in ladder fuels.
- 7. To prevent harming vegetation, consider alternatives to trimming any understory vegetation other than huckleberry. For conifers, avoid trimming up greater than

50% of the tree's total crown. For deciduous trees, avoid trimming up greater than 25% of the total crown

8. Understory vegetation should be trimmed no lower than 5' but can be greater than 5' in order to maintain screening.
 9. Consideration should be given not only to screening between properties but also between the owner's property and the road.
 10. Duff is decomposing organic matter. Leaves, mulch and nurse logs greater than 4" in diameter should remain on the forest floor to provide soil nutrients and moisture.
 11. Small dry woody debris in the form of dead understory vegetation, fallen tree branches less than 4" in diameter, and trimmings from trees and shrubs should be removed per PRC permit.
- (e). To remove vegetation: Diseased, damaged, or unstable trees; see Policy 4.04 for full requirements for mitigation of imminent and non-imminent hazardous trees.
- (e). Increase light: To allow crown thinning, limbing, and/or removal if necessary of trees in proximity to the applicant's dwelling to increase light falling on the dwelling and/or property.
- (f). Protect bank stability: To allow removal permits where it is evident that a tree along the bank line will contribute to bank line sloughing and erosion. A certified professional (e.g. certified arborist, geologist, and/or hydrologist) opinion at the applicant's expense may be required at HPMa discretion. Said employed professional must be acceptable to the HPMa.
2. **Water View Enhancement:** Many properties at Hartstene Pointe are value enhanced for their view. A view property comes with an expectation of enjoying said view. View lots vary dramatically in their location thus affecting the angle and width of potential views. No one formula in determining what view should be permitted for each property can apply. The Permit Review Committee and the HPMa Board of Directors shall exercise its discretion in view permitting on a case-by-case basis. The HPMa Board of Directors shall consider the following when evaluating a request for view enhancement:
- (a) View lots are determined by Mason County tax assessments.
 - (b) Developed or undeveloped lots may seek view enhancement.
 - (c) The HPMa Board of Directors will limit view limbing and/or windowing on the common area to that which is necessary to accommodate a reasonable view as determined by the HPMa Board of Directors. The HPMa Board of Directors may consider the residence design, view elevations, the horizon, and the health of the affected trees.
 - (d) The HPMa Board of Directors may allow thinning by tree removal in the common area for trees that substantially obstruct the property owner's view, so long as the health of the forest, the bluff, and wildlife are not unreasonably compromised.
 - (e) If an applicant requests removal or limbing of a tree or vegetation in a neighbor's view corridor, a separate permit is required from the neighboring property owner.
 - (f) No tree may be removed if its removal contributes to bank erosion. Any tree with a diameter of 6 inches or more located within 50 feet of the bluff, or on the bluff, shall have Mason County approval prior to removal as required by county ordinances. Trees growing on banks may be topped to enhance view, only if topping does not

endanger the tree and risk subsequent bank erosion. A certified arborist opinion may be required by the HPMa.

- (g) Permits to trim bushes and shrubs in the common area within the view corridor of a lot to a height of not less than 36" shall be granted.
- (h) Water view enhancement: Limbing, windowing or removal on the common area should generally follow the view corridors as shown on the following diagram.

Platted residential view lots that have a Common Area on a View Corridor boundary line, may request the view corridor trimming to angle out on a trapezoidal shape. In such a case, the angle may not be more than thirty degrees and/or no further than midpoint of the common area if another lot shares that common area.

- (i) For lots that have different settings, view corridors shall be determined by HPMa. The following diagram, figure 1, is a guideline for establishing view corridors for circular lots (similar criteria will be used for rectangular lots):

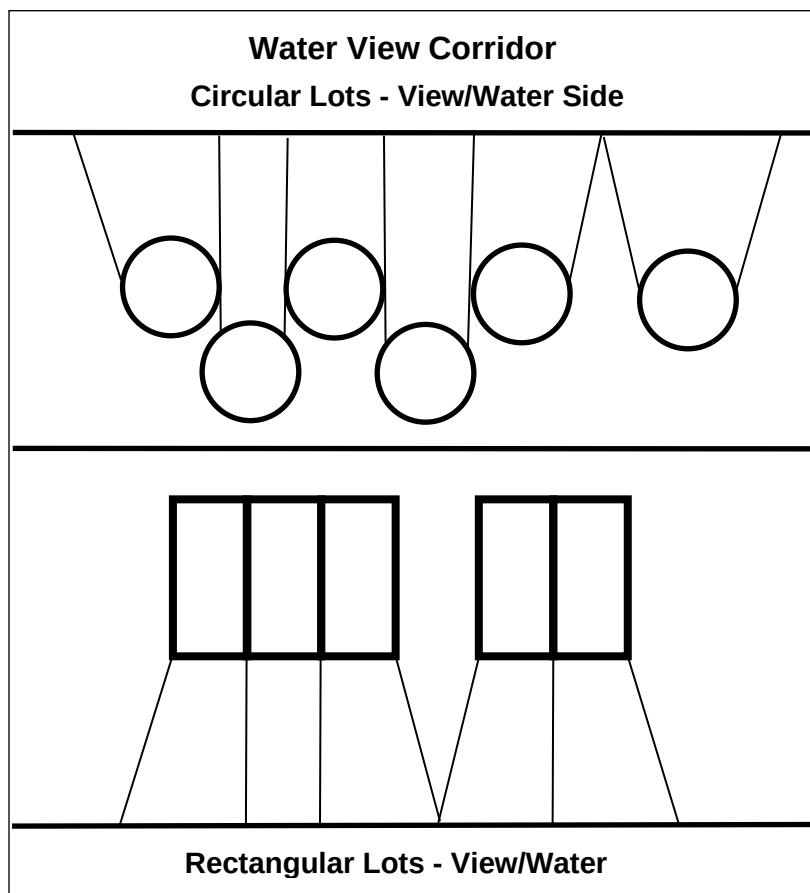


Figure 1

- 3. **Actions that do not need a permit:** Maintenance of Common Area vegetation by Owners which do not require a permit:
 - (a). **Actions which require notice:** At least 5 days prior to doing this work a written notice must be filed with the HPMa office by filling out a "Non-Permit – Work Notice", to provide a way to monitor the effectiveness of the provisions in this section. The "Non Permit – Work Notice" shall be signed by the HPMa office prior to the commencement of work. There will be no cost to file this notice.

- Where HPMa had previously issued a permit and determined the boundaries of a view corridor to trim huckleberry and salal bushes within owners view corridor to a height of not less than 3 feet.
- For property owners to remove tree limbs from Common Area trees that are within 10 feet of a structure, or to remove tree limbs within 18 feet of the chimney/stovepipe of the structure.
- Trimming of Common Area trees over-hanging designated driveways, parking areas and paths to allow 12 feet of clearance above the graveled surface.
- Removal of dead vegetation on Common Areas, unless otherwise noted in these Rules. Leaves, mulch and nurse logs greater than 4 inches in diameter shall remain on the forest floor as they provide nutrients to the forest and habitation for wildlife.

(b). **Actions which do not require notice:** Notice is not required for removal of dead vegetation within a designated driveway, pruning of diseased parts of huckleberry bushes, removal of noxious weeds such as thistles and tansy ragwort. Debris must be disposed of as directed by the HPMa office.

4. **Owner responsible for costs:** Owners who apply for Common Area work are responsible for the costs of the permit, cost for the work and repair/ mitigation of common area, if applicable.
5. **Common Area Hazard Trees:** Owners may submit a Work Order Request(s) to the HPMa office to inspect any tree in the common area where there is a concern of it being a hazard. HPMa will follow HPMa Policy No. 4.04 Forest Management, Section III. Common Area Hazard Tree Management in determining the action to take for any submitted Hazard Tree request.

D. **Removal of Vegetation Debris:** For permitted work, the owner is responsible for having all vegetation clippings and debris hauled away from Hartstene Pointe unless an exception is defined on the permit. Dumping of trash or debris over the bank onto shoreline areas is prohibited.

Section 21. Right to Use and Enjoyment: The CC&R's state that no Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners or the Association's right to the use and enjoyment of their respective properties, or the other lot Owners' right to the use and enjoyment of the Common Area. The following guidelines are not intended to infringe upon owners' rights but to provide some guidelines as to the expectations and requirements regarding the use and enjoyment of an owner's lot and/or common area:

- A. **Noise Complaints:** Refer to Article IX, Personal Conduct, of these rules.
- B. **Pet Complaints:** Refer to Article X, Pet Ownership and Control, of these rules.
- C. **Construction Noise:** Exterior construction shall start no earlier than 8 AM and shall stop at 6 PM.
- D. **Yard Equipment Noise:** Yard equipment shall not be operated earlier than 8 AM and shall stop at 6 PM.
- E. **Chimney Smoke:** Wood smoke is one of the main sources of air pollution in Washington State. Improper wood stoves, fireplaces and other wood burning devices put out hundreds of times more air pollution than other sources of heat and are harmful to humans and wildlife. Wood burning at Hartstene Pointe must meet federal EPA and Washington certification standards per

WAC 173-433-110. Emitting smoke that does not meet WAC-173-433-110 is a violation of these rules. Owners shall comply with any and all burn bans or restrictions imposed by any governmental jurisdiction that has authority. Violators will be referred to the appropriate state agencies.

- F. **Other Use Complaints:** The Board of Directors of the Association shall determine whether any given use of a Platted Residential Lot unreasonably interferes with those rights and such determination shall be conclusive.

Section 22. Any violation of any of the provisions of this article shall be deemed a violation subject to the enforcement provisions of ARTICLE I and Fines per Table 1.

ARTICLE V Building Restrictions

Section 1. The requirements of CC&R ARTICLE VIII of Hartstene Pointe and all additions, as applicable, are incorporated as rules and regulations herein and these Rules shall clarify and define the Building Restrictions of HPMa.

Section 2. Permit Responsibility: Owners are responsible for obtaining any and all required permits per CC&R Article VI and Article III of these Rules. No work shall commence until a permit has been issued by HPMa.

Section 3. Board Approval Process: For any building restrictions, requirements, and/or special permissions needing approval of the Board of Directors per the CC&R's Article VIII; the process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

Section 4. Exterior Finishes: The CC&R's state that exterior finishes shall have a flat, non-glossy appearance and colors shall tend to dark grays, gray-greens and browns. Finish colors can vary greatly in the range as defined. Color selections shall be harmonious with the natural settings of the forest and beach environment associated with Hartstene Pointe. Permitted paint sheens can be flat, eggshell or satin. Bright primary colors are not permitted. Owner shall submit exterior color samples with the permit applications. Sheds and/or outbuilding(s) shall match the primary residence if stick built. Sheds or outbuildings that are pre-fabricated shall tend to dark grays, gray-greens and browns and be in the same color range as the primary residence. Fences and decks may be left natural, stained a finish that enhances the fence/deck material (dark grays, gray greens and browns), or painted the same color as the body of the residence. Exterior trim shall be stained or painted so as to complement the finishes they adjoin – white trim is permitted.

Section 5. Construction Clean-up: The Owner is responsible for keeping common area clean and free of construction debris, including mud tracked onto the roads. The building area shall be kept reasonably clean during the construction period.

Section 6. Building Setback: The minimum distance between any point on the boundary of a Platted Residential Lot and the nearest part of any building constructed thereon shall be five feet. A strip five feet in width inside and parallel to the boundary of all Platted Residential Lots is defined as the setback area. Any work inside the setback area shall not be undertaken without the written permission of the Board of Directors. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

It is the property owners' responsibility that all permitted work on the Platted Residential Lot inside the setback area takes place only on his/her lot and within the boundaries through the use of a survey conducted by a Washington licensed surveyor. It shall be the responsibility of the lot owner to maintain the identification of the lot survey markers (capped rebar) for all boundary lines of his/her property.

Setback Guidelines: In general the intent of the CC&R's is to maintain HPMA as a natural environment. The following restrictions apply to the five foot set back area:

- A. No building or structure is permitted in the five foot setback area.
- B. Hardscapes, the man-made features used in landscape architecture, e.g. paths or walls, as contrasted with vegetation are not permitted in the five foot setback area. Exceptions may be granted for the following:
 - 1. Retaining walls to prevent erosion.
 - 2. Access for ADA requirements.
 - 3. Fences
- C. The removal of trees or brush in the setback is discouraged. The following are considerations to be given substantial weight for permit applications for the removal and/or limbing of a trees and/or brush in the setback:
 - 1. Root damage associated with construction excavation
 - 2. Proximity to structure or other trees
 - 3. Excessive mold on a structure
 - 4. Desire for more light
 - 5. Desire for improved view
 - 6. Excessive risk/hazard to residence
 - 7. Diseased or damaged trees

Should the applicant choose to employ a Washington certified Arborist or Forester to give supporting evidence to their position, the HPMA shall give consideration to said testimony.

Section 7. Fences: Fences may not be installed without the written approval of the Board of Directors. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

- A. Fences shall be made of wood, stone or brick. Metal or glass accents may be accepted.
- B. Fences shall be no greater than six feet in height.
- C. Fences shall not unreasonably obstruct the view from any other Platted Residential Lot.
- D. As a general rule, the maximum length of the fence shall not exceed fifty percent of the total circumference of the outer property line of the circular lots or fifty percent of the total length of the outer boundary lines of rectangular lots. Applicants seeking approval of a fence longer in length than defined above shall only be approved if the fence meets the following requirements: the fence is a transparent see-through design, the portion of the fence greater than 50% shall be no taller than 4 feet in height and the natural vegetation in the common area conceals the fence from neighboring lots.
- E. For circular lots the fence may be located anywhere within the outer boundary lines (no part of the fence may be outside or straddle the property line). For rectangular lots the fence be may located anywhere within the outer boundary lines adjacent to HPMA common area (no part of

the fence may be outside or straddle the property line). For rectangular lots with shared lot lines the fence may straddle the lot line if both adjacent lot owners agree to this prior to construction.

- F. Per the CC&R's, no structure of any kind may trespass or encroach on the Common areas. Verification of the property line by a surveyor, using industry standard stakes, which clearly define the lot boundary lines are required for all fence installations located on or near the outer boundary lines.
- G. Fences are not permitted on Island House Platted Residential Lots.

Section 8. Driveway Entrances: Entrances to Platted Residential Lots shall be as originally constructed. Other or additional entranceways or trails may be constructed or maintained with the written permission of the Board of Directors. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

Section 9. Exterior Lighting: Exterior lighting of any sort which is visible from any street shown on the plat, any part of the Common Area, or any other Platted Residential Lot in Hartstene Pointe may be installed only with the written permission of the Board of Directors. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.

Exterior lighting shall:

- A. Be defined on building plans for new construction, remodels and/or any permit application which includes exterior lighting. Plans shall show locations and the type of lights fixtures which will be used. Light fixture cut sheets showing design and specifications shall be attached to permit applications.
- B. Exterior light fixtures shall not allow direct spot/flood lighting to shine directly onto any neighboring homes or into windows. Flood or Spot lights must be directed away from neighboring homes.
- C. All exterior light fixtures shall be dark sky compliant except string lights and one pair of flood lights. Flood lights may shine on the parking area and entrance walkway for egress and ingress.
- D. All exterior lights shall be turned off by 10 pm. Exceptions are deck or patio light(s) which may be on after 10 pm if the deck or patio is being used and entry lights turned on as needed for safe entry and exit after 10 pm. Lights can be turned on manually, by a remote device or motion activated with a timer that automatically shuts off the light, but should not be left on all night.
- E. Sodium Vapor lights and/or high wattage area lighting is not permitted.
- F. String lights are permitted only if they serve a functional purpose, such as illuminating a deck. String lights should be located within the perimeter of the deck or patio and shall not extend into landscaping or common area and are not intended for decorative purposes. The exception is holiday lights, which may be temporarily installed without a permit, between the day after Thanksgiving and January 5. Owners shall not install holiday lights on Common area.
- G. Exterior lighting which was approved and installed with written permission of the Board of Directors prior to this Rules change is grandfathered in. The following light fixtures are also grandfathered if installed prior to this Rules change and do not unduly shine into neighboring homes: porch lights, wall sconces or pendants on decks/patios and one pair of flood/spot lights. When those existing light fixtures fail, or if the Owner is replacing the old fixtures with new, the new fixtures shall require a permit and shall meet the criteria as now defined in these rules. Grandfathered exterior lighting must be used in accordance with the criteria of B, D and E above.

Section 10. Sheds and Outbuildings: No outbuilding or structure of any kind may be built on a Platted Residential Lot before construction of the permanent residence. Sheds and/or Outbuildings may be granted a permit at the same time as the permanent residence. The BOD may authorize the shed or outbuilding to be completed first and used for storage during construction.

Section 11. Owner's Responsibility for Contractors: It is the property owner's responsibility during construction to see that the CC&R's and R&R's are adhered to by all construction workers and contractors and any other workers involved in the construction. Repairing any damage to the common area, to HPMA satisfaction, is the responsibility of the lot owner. Within the one-year time limit for construction, any damage to flora must be replaced with flora in keeping with the area.

Section 12. Dumping Construction Debris: Dumping of trash or debris over the bank onto shoreline areas is prohibited. Causing or allowing the disposal of any waste material (processed lumber, plastics, cloth, metal, glass or any other non-natural trash or debris) onto the common area or greenbelt is prohibited. HPMA dumpsters for household garbage shall not be used for construction debris. It is the Owner's responsibility to have all construction debris hauled off Hartstene Pointe at their expense.

Section 13. Private Buildings/Structures and Landscaped Grounds: The CC&R's state that all buildings and landscaped grounds on any Platted Residential Lot shall be kept in a safe and reasonable state of repair, cleanliness and neatness. The intent is to preserve the aesthetic appearance of our community and retain the value of our properties. The following guidelines are not intended to infringe upon owners' rights but to provide clear definitions as to the expectations and requirements for property as to a safe and reasonable state of repair, cleanliness and neatness for properties at Hartstene Pointe:

- A. **Buildings and Structures:** Buildings and structures shall be in a safe and reasonable state of repair.
 - 1. **General:** Visible damage or neglect of maintenance for buildings, structures and fences is prohibited.
 - 2. **Roofs** shall be in good cosmetic condition and shall have no more than twenty percent of the roofs surface covered in moss.
 - 3. **Siding and Trim:** The siding and trim paint surfaces shall be in good cosmetic condition. Obvious peeling, wear, and moldy/mossy surfaces are prohibited.
- B. **Landscaping:** Landscaped grounds on any Platted Residential Lot shall be kept in a safe and reasonable state of repair, cleanliness and neatness.
 - 1. **General:** Owner is responsible for ongoing maintenance of established landscaping on the private lots as it applies to trimming trees, shrubbery, grasses, and decorative plants per Article IV, Section 18A of these rules. Lawns shall be mowed at reasonable intervals.
- C. **Exterior Appearance:** The following provide definitions regarding household goods visible on a permanent basis from neighboring lots or common area as it applies to cleanliness and neatness of the exterior lot.
 - 1. **Permanent Storage/Placement of Exterior Household Goods:**
 - (a). **Patio Furniture:** Patio furniture is described as furniture specifically manufactured and intended for outdoor use. Permanent storage of patio furniture shall be limited to decks and/or patios unless submitted and approved integral to a landscaping plan.
 - (b). **Barbeque Grills and Smokers:** A combined maximum of two barbeque grills and/or

smokers is allowed. Permanent storage of barbeque grills and/or smokers shall be limited to decks and/or patios unless submitted and approved integral to a landscaping plan.

- (c). **Fire Pits, Chimineas or Portable Heaters:** A maximum of one fire pit or chiminea and two portable heaters is allowed. Permanent storage of fire pit or chiminea shall be limited to decks and/or patios unless submitted and approved integral to a landscaping plan. Fire pit, chiminea and portable heaters must be UL listed and limited to propane or electric flames. Wood burning is strictly prohibited.
 - (d). **Firewood:** Shall be stacked neatly in permitted and/or approved racks or on side of house.
 - (e). **Golf Cart:** A maximum of one golf cart may be parked on gravel parking area or alongside residence.
 - (f). **Special Permissions:** Any household item not falling within the listed acceptable descriptions as defined above that will permanently be visible from neighboring lots or common area must have the written permission from the Board of Directors, prior to being purchased and placed on the deck, patio or private lot. The process for granting such permission is to apply for a permit for PRC review per Article III of these Rules.
2. **Temporary Placement of Exterior Household Goods:** The following items, or similar use products such as Kayaks/Canoes, Bicycles, Water Toys, Play Toys, Sports Equipment, may be placed in a location visible from neighboring lots or common area with the intent that it will be actively used during the day in the vacation season. Permanent storage of these items shall be inside the residence garage, sheds, under decks or behind a fence.
3. **General Storage:** Deck, Patios and Private lots in general are not intended to be storage areas. Any item not falling within the listed acceptable descriptions for permanent or temporary storage as defined above shall not be visible from neighboring lots or common area. Items shall be stored inside of residences, garages, sheds or under decks if properly screened and/or behind fences which screen the items from view. Items which shall not be stored in sight include, but are not limited to, unlicensed vehicles, unlicensed motorcycles or scooters, ATV's, appliances, bicycles, kayaks, canoes, toys, exercise equipment, food coolers, tools, building materials or other unsightly materials. Food coolers, brooms, and other such utilitarian articles may be limited to decks and patios if not easily visible from common area roads or trails. Tarps shall not be an appropriate method of screening items from view.

Section 14. Any violation of any of the provisions of this article shall be deemed a violation subject to the enforcement provisions of ARTICLE I.

ARTICLE VI

Traffic Control

Section 1. No vehicle shall be operated within the boundaries of Hartstene Pointe in a careless manner that endangers, or would be likely to endanger, any person or property or animal.

Section 2. Pedestrians have the right of way over any type of vehicle.

Section 3. Vehicle and Operators license required:

- A. Any vehicle, required by Washington State law to be registered or licensed, shall not be operated within the boundaries of Hartstene Pointe except by duly licensed operators.
- B. Any motorized vehicle (electric, gasoline, etc.) operated within the boundaries of Hartstene

Pointe shall be operated by a licensed, insured driver. The vehicle shall be equipped with adequate headlights and taillights for operation during the hours of darkness. Vehicles not equipped with adequate head and rear lighting may be operated within the time frame after the first hour following daylight and before the last hour preceding sunset.

Section 4. No vehicle may be operated within the boundaries of Hartstene Pointe in excess of fifteen (15) miles per hour unless otherwise authorized by the Patrol Officer,

Vehicle operators determined to be exceeding the posted speed limit may be subject to a fine.

Vehicle operators and the property owner responsible for and associated with the offending vehicle may also be subject to fine.

Section 5. No motor vehicle, bicycle or other self-propelled vehicle may be operated on any of the trails within the boundaries of Hartstene Pointe. The only motorized vehicles allowed on the Pointe roads are licensed, street-legal vehicles and golf carts. No person shall operate any vehicle or combination of vehicles upon any part of the Pointe under any conditions in such a manner as to exceed the allowed dBA (80) as measured by a decibel reader from a distance of twenty-five feet from the vehicle. At no time will the operator of the vehicle willfully make unnecessary noise by gunning the engine, screeching the tires, engaging in unnecessary use of the vehicle (joy riding), rapid acceleration or deceleration or speeding. Vehicle maintenance requiring protracted idling or engine revving is not permitted at the Pointe. Such actions will result in sanctions as specified on the rule schedule under excessive noise.

Section 6. Any fuel-motorized vehicle operated within the boundaries of Hartstene Pointe must be properly muffled and operated in a quiet and unobtrusive manner.

Section 7. No vehicle may be operated on any of the beaches within the boundaries of Hartstene Pointe. HPMA maintenance and Emergency vehicles may be exempted from this rule.

Section 8. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I.

ARTICLE VII Gate Access Control

Section 1. Entry, or use of, the common area at Hartstene Pointe, as defined, must be authorized by an Owner at Hartstene Pointe or the HPMA Office as defined in definitions herein. Persons who entering Hartstene Pointe without permission shall be deemed trespassers and subject to enforcement action by the Mason County Sheriff.

Section 2. Authorized Gate Entry - Key Cards and Access Control

HPMA uses an Access Control System operated by Key Cards to control entry through the Front Entrance Gates, Pool and Fitness Center. The Access Control System tracks entry from unique codes assigned to all Key Cards.

- A. Definitions. "Key Card" will be used to define both Plastic Cards and Remote Controls.
- B. Issuance. HPMA may issue up to six key cards for each Lot by use by Owner(s). Two Remote Controls may be issued in lieu of two Key Cards.
- C. Delegation. Owner(s) may delegate the use of Key Cards to family, tenants, and contract purchasers in possession. Owner(s) are liable for all Key Cards issued to them. Owner(s) shall not delegate the use of Key Cards to Contractors or other individuals except as defined herein.

1. Guests may be provided with the use of a key card on a temporary basis when the owner is present. Guests may not be provided with a gate key on a permanent basis for access to the Pointe. If HPMA learns that a gate card has been delegated to a guest on a permanent basis the card will be removed and the issuance of key cards for that owner will be reduced by the number of cards removed for one year and shall be fined per Table I – Schedule of Fines. Multiple violations will result in the permanent reduction of issuance of gate cards.
 2. Owners may delegate gate cards to tenants and their guests when staying in their home in the owners' absence. Gate cards shall be retrieved by the owner at the end of tenancy. Gate cards not retrieved shall be considered Lost or Stolen and shall be reported to the HPMA office per Section D below.
 3. Contractors/Property Managers refer to Section G below.
- D. Lost/Stolen Key Cards. Proper use of Key Cards allows HPMA to track entry into our community and facilities controlled by our access system.
1. Lost or stolen Key Cards shall be reported immediately to the HPMA business office for "system" cancellation.
 2. Replacement of a lost, stolen or damaged Key Card(s) will be processed for the published fee when a request is made by an Owner(s).
 3. Key Card(s) not reported stolen and found being used by contractors or any other non-authorized users shall be removed from the system and the Owner(s) shall be fined per Table I – Schedule of Fines.
- E. Remote Controls. Remote Controls have a unique code which identifies the lot they are assigned to. Unlike the plastic Key Cards which cannot be programmed or transferred to another device, Remote Controls may be programmed to another control system.
1. It shall be a violation for any Owner or Delegate to program their Remote Controls to any other device except a vehicle that is registered to the Owner or Delegate.
 2. If any Owner or Delegate is found to have allowed the programming of their Remote Control to any other device not registered to them, the Remote Control will be removed from the system and will not be re-instated. The owners will not be able to purchase a Remote Control for one year, and shall be fined per Table I – Schedule of Fines.
 3. All Remote Control users, including Owner(s) and/or their Delegates, shall sign a use agreement as a condition of issuance with the HPMA office.
- F. Transfer at Sale. Upon the sale of a Lot, it is the Seller's responsibility to transfer all Key Cards in their possession to the Buyer.
1. If the Seller does not transfer their Key Cards to the Buyer, it is the Buyer's responsibility to purchase Key Cards for their new property. If NO cards were transferred, HPMA will provide one Key Card at no cost.
 2. HPMA will disable all Key Cards issued to the Seller at day of closing.
 3. The Buyer shall contact the HPMA office during normal business hours to verify all Key Cards transferred to them from Seller. HPMA will then register and reinstate all Key Cards to the Buyer, except Remote Controls.

4. Since Owner(s) can program their Remote Controls to other control systems HPMA will not reactivate a Remote Control and the Buyer will be required to purchase a new Remote Control, at their option.

G. Contractors. An Owner may apply for the issuance of a Key Card or Code, for the front vehicle gate only, to a contractor who is under contract for new construction/major remodel work, or to a property management company (Key Card only) who manages an owner property for tenancy, as approved and permitted by the PRC and/or Board of Directors. A Contractor who often and routinely provides services to many owners or the HPMA may apply for the issuance of a key card or code.

1. Owner and/or Contractor will sign a use agreement prior to issuance of Key Card or Code (Remote Controls are not eligible).
2. HPMA has final decision as to whether a Key Card or Code is issued.
3. Published registration fees, regulations, fines and security deposits shall apply.

H. Outside Agencies. HPMA may issue Key Cards for the front gate only, to:

1. Government Agencies for Emergency Access (Knox Switch and/or Code).
2. Public School Buses (Remote Control).
3. Public Utilities; Water/Sewer, Phone, Electricity, Garbage (Plastic Card or Code).
4. National Delivery Services such as US Postal, UPS or Federal Express (Plastic Card or Code).
5. Newspaper Carriers (Plastic Card).

Agency Representative will sign a use agreement prior to issuance of Key Card.

- I. Owner Notification. The HPMA shall not grant access to the community for any vendor, contractor, guest, requesting access to the Pointe or private property unless the Owner notifies the office and/or patrol in advance. Owner must contact HPMA to put guest on office generated ledger/log. Entry by way of HPMA office and/or Patrol shall only be granted during normal business hours.
- J. Temporary Codes. For non-business hours, temporary keypad access codes may be issued by the HPMA office for the front vehicle gate for vendors, contractors, guests, family members and tenants provided Owner has provided HPMA with property "Owner Notification". All requests must be applied for through the HPMA office during normal business hours with no less than two days' notice. The issued codes are temporary and will only allow entry for a 24 hour period. HPMA may charge a fee for the issuance of temporary codes as set by the Board of Directors.

Section 3. It shall be a violation to tamper with or alter the normal function(s) of the entry or exit gates at Hartstene Pointe, or to gain entry without a valid gate card, or as provided in Section 4, below.

Section 4. Entry for all persons coming to Hartstene Pointe without a valid gate card, including Contractors and Vendors, shall be by permission from authorized personnel or by an Owner by securing permission through the use of the gate communication system.

Section 5. Any Owner, who has had their right to use and enjoy the Common Area suspended, will be issued only one gate card – said gate card limited to provide access only to the owner’s private property.

Section 6. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I and subject to fines per Table I – Schedule of Fines.

ARTICLE VIII

Clubhouse - Pool – Tennis/Sport Courts - Picnic Areas – Fitness Center - Trails

Section 1. Use of the clubhouse, pool, tennis/sport courts, ~~meorage~~, picnic areas, fitness center, trails and adjacent areas shall be subject to the rules and regulations herein and additional site-specific rules promulgated by the Board of Directors. Such site-specific rules may be distributed to the owners and shall be posted in such areas in an abbreviated form.

Owners, Guests, Tenants, and Renters shall obey the posted signs in all facilities; Owners are responsible for violations by their Guests, Tenants, or Renters.

Section 2. Use of the common facilities and common areas are subject to the following rules and regulations:

A. General for all Common Area Facilities:

1. Facilities within the common area are available for use by all owners on the same terms per such rules as set by the Manager and Board of Directors.
2. Common area facilities are first-come first-served. No saving spaces when not being used.
3. No smoking on all HPMA Common area property and facilities, including but not limited to; roads, trails and parks.
4. Clean-up and disposal of garbage in proper receptacles is required.
5. No one shall attach decorations, lighting, etc. to facilities with nails, screws, hooks or methods that will damage structures.
6. Observe pet rules per Rules and Regulations Article X – Pet Ownership and Control.
7. All activities in HP common area are subject to existing rules and regulations. Participants shall comply with all requests by Pointe security personnel.
8. All posted rules must be observed.

B. Use Specific to Clubhouse:

1. The HPMA Manager is responsible for clubhouse hours of operations and access. This schedule is subject to change with the seasons. A schedule will be posted in the clubhouse.
2. If event is outside normal clubhouse hours, use holder will check out keys and is responsible for locking all storage closets, kitchen and clubhouse at conclusion of event.
3. Except for immediate transit from parking areas to the pool area, persons in wet swimwear are not allowed in the clubhouse at any time.

4. The pool table in the clubhouse is NOT to be moved.
5. It is not permitted to nail, glue or affix anything to the walls, posts fireplace, etc. without prior approval and/or remove any clubhouse fixtures, pictures, flags or other decor.
6. If kitchen is used, it is to be left clean. ~~when you leave.~~ All coffee pots, dishes, and silverware are to be washed and put away. The stovetop and ovens should be left clean and in the off position and the coffee pots unplugged,
7. The carpet should be vacuumed and the laminate floors swept and cleaned of any spills.
8. Garbage should be collected and taken to the dumpster.
9. No alcoholic beverages can be left in the clubhouse.

C. Pool and Spa Use:

1. Use of the pool and spa shall be governed by rules approved by the Association and Washington State pertaining to use of the pool and spa. People using the Pool shall abide by the posted rules.
2. Swimming pool toys furnished by HPMa are the only toys allowed in the pool and pool area.
3. No lifeguard is on duty at the pool at any time. All property owners, residents and guests use the pool or spa at their own risk. Pool Monitors are not lifeguards.
4. No more than 12 family members including guests of property owners may use the pool area at any one time.

D. Tennis/Sport Court Use:

1. Tennis/Sport Court hours of use are from 8 am to Dusk.
2. People using the Tennis/Sport Courts shall abide by the posted rules.

D. Picnic and Outdoor Area Use:

1. When a Mason County or Hartstene Pointe Burn Ban is in effect no fireplace at any of the picnic areas shall be used.
2. Use good judgment when building a fire and make sure it is out before leaving the area.
3. When leaving, all electrical appliances and any lights used should be turned off.
4. Garbage should be picked up and put in the proper containers.
5. Return any furniture you may have moved to its regular location. Furniture is not allowed on the beaches and tidelands.
6. No amplified music, either live or recorded, is allowed at beach, picnic, gazebo or other outdoor areas unless approved by the Manager. A microphone and amplifier may be used for voice announcements only.

7. People using the Picnic Area shall abide by the posted rules.

F. Fitness Center Use:

1. People using the Fitness Center shall abide by the posted rules.

G. Trails Use:

1. No smoking on all HPMA Common area property and facilities, including but not limited to; roads, trails and parks.
2. Observe pet rules per Rules and Regulations Article X – Pet Ownership and Control. Pets must be on a leash when using trails.
3. People using the trails shall abide by the posted rules.

H. Reserved Exclusive Use of Designated Common Area Facilities:

1. Property owners may apply to reserve the use of the following structured facilities with restrooms in close proximity for exclusive use for group meetings and social functions: Clubhouse, Clubhouse Gazebo, North Beach covered picnic area, the Lagoon/Spit covered picnic area, and West Beach/Marina covered picnic area. Use permits must be approved and scheduled by the Manager; dates and times of use will then be recorded on the clubhouse calendar. No more than two of these areas may be reserved for group use on the same day. North Beach reservation counts as two.
2. A use fee is required for the reservation of facilities for exclusive use at rates set by the Manager and approved by the Board of Directors
3. Use fees are waived for functions open to all HPMA owners, guests and/or tenants. Such events shall be approved by the Manager or Board of Directors. If approved, invitations to all HPMA owners shall be sent out by clubhouse postings, website postings and email blasts. Clubs which require a membership fee are not considered events open to all HPMA owners.
4. A refundable damage deposit is required for exclusive use reservations which will host greater than 15 people at rates set by the Manager and approved by the Board of Directors. The deposit is waived for functions open to all HPMA owners as defined in Section (3.) above.
5. Only property owners and "Registered Occupants" (refer to Article XII for definition of Registered Occupant) are eligible to reserve space for group functions and are responsible for the conduct of their guests.
6. Reservations for exclusive use shall not be permitted in any facility or area during periods of heavy usage by property owners except if approved by the HPMA Board of Directors. These include but are not limited to days and weekends of the Memorial Day, 4th of July, Labor Day and other holidays. The Manager will determine other periods of heavy usage for any particular year.
7. Unless approved by the HP Manager, activities and functions in which a majority of persons are not HP property owners shall not exceed 50 persons. Activities and functions open to all HPMA lot owners may exceed 50 persons if approved in advance by the Manager. The Manager may require an approved parking plan for larger events.

8. Group events can be reserved for a maximum of 5 hours unless a longer duration is approved by the Board of Directors.
 9. If the facility is left in a condition that requires additional janitorial services, an appropriate fee will be charged to the property owner responsible for the event at rates set by the manager and approved by the Board of Directors. The fee is waived for functions open to all HPMA owners as defined in Section (b) above.
 10. Chairs, tables and other items can be requested for use. If approved for use by the Manager there is no cost unless applicant requests setup by HPMA staff. Rates for set-up are set by the Manager and approved by the Board of Directors. The set-up fee is waived for functions open to all HPMA owners as defined in Section (b) above.
 11. Use holder is solely responsible for costs associated with any loss or damage to facilities and/or chairs, tables and other items used during event.
 12. Use holder understands that a lot owner will be required at gate to admit guests. Alternatively, the requestor can be issued a temporary 4 digit gate access code from the HPMA office which can be used by function guests needing access to the Pointe. The access code, which will be activated for a maximum of 4 hours, is automatically revoked thereafter.
 13. If approved, the HPMA staff will post the function on the clubhouse and website calendar and provide the patrol officer with a copy.
 14. If alcoholic beverages will be provided to be served or sold to guests by person(s) or entity hosting the event, HPMA requires Property Owner or entity who has reserved the facility to acquire a Banquet Permit or Special Occasion License, whichever is applicable, from the Washington Liquor Control Board and provide a copy to the HPMA office prior to the event.
- I. Noise and nuisance behavior:
1. Good manners and behavior that recognizes the rights of others is always expected.
 2. All outdoor music performances on HPMA-owned facilities must conclude by 9:00 p.m.

Section 3. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I and fines table.

ARTICLE IX Personal Conduct

Section 1. Owners, as defined herein, tenants and other persons in possession of a residence are responsible for the conduct of their guests.

Section 2. Owners as defined herein, tenants, guests and other persons shall observe reasonable and proper rules of conduct and shall refrain from infringing upon the rights of others within the confines of Hartstene Pointe.

Section 3. Noise Complaints. Sound levels, including vocal sounds, pet noises, car noises, horns, radios, televisions, stereo equipment and similar sound devices shall be kept at reasonable decibel

levels at all times. Refer to Article X – Pet Ownership and Control, Section 6B for definition of excessive pet noise.

- A. The Patrol Officer shall respond to noise complaints and attempt to abate them.
- B. Excessive noise complaints shall be referred to the Mason County Sheriff for investigation under Mason County Noise Ordinances.
- C. Home security alarms may sound for no more than five minutes per alarm and shall not sound a false alarm more than three times in a one-year period. The Association will not answer Home Security Alarms. The Sheriff may be called. False alarms in excess of three, within a one-year period, may be subject to BOD action and fines.
- D. In the event that a property has more than three excessive noise complaints within a three month reset period the Board of Directors of the Association may determine whether the noise from a Platted Residential Lot unreasonably interferes with those rights of other property owners. In such a determination a fine will be issued.

Section 4. Common Area Parking. Refer to Article IV, Land Use Restrictions, Section 9.

Section 5. Fire Prevention Rules. Catastrophic fire danger to lives, property and the forest is ever present at Hartstene Pointe and the following rules shall be observed:

- A. **No Smoking on HPMA Common Areas.** At no time is smoking permitted on trails, roadways, or in common areas. Smoking is permitted within vehicles provided that all ash and smoking material remains in vehicle. Flicking ash or smoking material out of vehicle is strictly prohibited. Smoking is not permitted in golf carts.
- B. **Common Area Fires.** Fires in common area are limited to the Fireplaces with Chimneys at the North Beach Picnic Shelter, The Spit Picnic Shelter, The Marina Picnic Shelter and the Clubhouse Gazebo and to the fire ring enclosures at the spit. Any and all types of fires or open flame devices are prohibited on any common area, including the tidelands below the bulkheads.
 - 1. Fires located in fireplaces shall be no larger than can be safely contained in the fireplace.
 - 2. Fires in fire rings at the spit shall be contained within the fire ring and flames shall be no taller than 2 feet.
 - 3. Fires at the fireplaces and the spit fire rings shall be for recreational use only and are NOT TO BE USED FOR DEBRIS DISPOSAL.
 - 4. Any such fire in a fireplace or fire ring must be continuously monitored by the person responsible for starting the fire, and extinguished before it is abandoned.
 - 5. Fires fueled by charcoal briquettes for grilling food are allowed in grills provided by HPMA at the picnic shelters and the spit.
 - 6. All open flame devices, such as torches for burning vegetation, tiki torches, etc. are prohibited.
 - 7. Fires and cooking with Charcoal Briquettes and/or pellets may be prohibited during fire bans.
- C. **Private Lot Fires and Open Flames Devices.** The following rules shall apply:
 - 1. Outdoor fires are prohibited on bare earth or any combustible surface.
 - 2. All wood-burning devices such as "fire pits" or "chimineas", with or without spark-arresting screens, are prohibited.

3. All open flame devices, such as torches for burning vegetation, tiki torches, etc. are prohibited unless specifically allowed herein.
4. Fires fueled by charcoal briquettes or pellets for grilling food are allowed if they are fully contained within proper cooking containers (barbecue grills) having legs keeping the fire at least 6" above any combustible surface.
5. Propane fueled barbeque grills and propane fueled outdoor patio fire pits are allowed if they are at least 6" above any combustible surface, and the equipment has certification from Underwriters Laboratory or a comparable independent safety-testing laboratory.
6. Indoor wood burning fires and cooking with Charcoal Briquettes and/or pellets may be prohibited during fire bans.

D. Fire Bans. All fire regulations shall be observed including those issued by Washington State, Mason County and Hartstene Pointe. Hartstene Pointe lies within the jurisdiction of the Washington Department of Natural Resources (DNR) except for private developed lots and the Spit over which Mason County has jurisdiction. The spit is defined as the land with boundaries starting at the Lagoon Boat Launch and north to the end of the spit at the lagoon opening. Developed lots have homes or RV pads. HPMA is required to adhere to respective fire regulations and burn bans issued by DNR and/or Mason County. The HPMA Board of Directors may impose fire regulations and/or bans which are more restrictive than those issued by DNR or Mason County.

1. Fire regulations and burn bans shall be strictly observed. Fire bans will be posted when in effect. Violating of burn bans shall be subject to HPMA fines and State law.
2. DNR laws state:
 - (a). A violation of a burn ban is punishable as a crime.
 - (b). In addition to criminal prosecution, DNR may pursue civil actions against any person whose negligence is responsible for starting or allowing a fire to spread.
 - (c). **If your fire escapes or otherwise causes a wildfire, you will be responsible for paying for people and equipment for fire suppression** as required by Chapter 76.04 RCW.

Section 6. Use of Fireworks Prohibited. The use of fireworks, including any composition or device, in a finished state, containing any combustible or explosive substance for the purpose of producing a visible or audible effect by combustion, explosion, deflagration, or detonation, is prohibited throughout Hartstene Pointe.

Section 7. Drones. All unauthorized uses of a drone are banned in the common area. Recreational use is prohibited. Commercial use can be authorized in accordance with Policy 5.03.

Section 8. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I.

ARTICLE X Pet Ownership and Control

Section 1. Only common household pets such as dogs and cats may be kept at Hartstene Pointe for noncommercial purposes.

Section 2. CC&Rs Article 7, Section 5 prohibits "nuisance" pets at Hartstene Pointe.

Section 3. All resident dogs shall be required to wear an identification tag provided by the owner.

Section 4. All dogs are to be housed indoors only. When allowed outdoors, dogs shall be leash-restrained when in any common area except when accompanied and closely supervised by the owner or caregiver within designated Off Leash/Free Run areas only.

A. "Leash-restrained" means to be firmly secured by means of a collar with chain or leash.

B. "Off Leash/Free Run" areas are designated as:

1. All beaches defined as the common area between the seawater and the bluffs, bulkheads and seawalls.
2. On all docks, floats and picnic areas dogs must be Leash-restrained.
3. The day after Labor Day until the day before the Memorial Day weekend (off season) the Off Leash/Free Run area is expanded to include the entire spit/road with boundaries starting at the Lagoon Boat Launch and north to the end of the spit.

Section 5. All owners or designated caregivers shall collect and sanitarily dispose of their pet's feces.

Section 6. Nuisance Pet: The Board defines nuisance pet as follows:

- A. Any animal that unreasonably interferes with another member's use and enjoyment of their property or common area or any pet that annoys, injures or endangers the comfort, repose, health or safety of another members or their property including their pets.
- B. Any animal habitually barking or howling or unreasonably disturbing the peace, comfort and repose of others. It shall be presumed unreasonable for an animal to bark or howl for over ten minutes in any one hour period where the barking and howling can be heard from common area or neighboring property.
- C. Any vicious animal allowed to run at large.

Section 7. Vicious Animal: The Board defines vicious animal as follows:

- A. Any animal that when unprovoked:
 1. Inflicts bites on a human or a domestic animal either on common area or private property, or
 2. Chases or approaches a person upon the common area in a menacing fashion or apparent attitude of attack
 3. Any pet with a known propensity, tendency, or disposition to attack unprovoked, to cause injury, or to cause injury or otherwise to threaten the safety of humans or domestic animals.

Section 8. The Board hereby delegates to the Manager the initial administration and enforcement of this rule. Any decision of the Manager may be appealed to the Board. The Manager, or Manger's designee, shall notify the owner and the aggrieved party of any animal determined by the Manager to be a nuisance in writing. The Manager shall notify the owner of the basis for the proposed action; the reasons the Manager considers the animal a nuisance; a statement that the animal is

subject to controls and penalties authorized by this rule and an explanation of the owner's rights to appeal such determination to the Board.

Section 9. If the Owner files a written request for appeal within ten (10) days of being notified of a finding of nuisance animal, the Board of Directors shall consider the matter at its next board meeting. The Manager shall present evidence that the animal meets the definition of a nuisance under this rule to the Board. The Owner shall be afforded the opportunity to present such evidence to the Board to establish that the animal does not meet the definition of nuisance under this rule. If the Owner asserts that the action of the animal was provoked, the Owner of the animal shall have the burden of proof to show provocation by a preponderance of evidence. Following hearing of the evidence, the Board shall consider the evidence presented and make a final determination on whether the animal is a nuisance. If no appeal is filed, the Manager's determination shall be final.

Section 10. Nuisance animals shall be subject following restriction:

A. For animals found to be vicious:

1. Confinement of the animal to owner's private property unless properly restrained by substantial leash under control of a suitable person.
2. Prohibition from use of the Off-Leash areas.
3. Muzzling of dog when not confined within an owner's private property.
4. Prohibit use of retractable leashes.

B. For animals found to be a noise nuisance:

1. The animal shall be prohibited from being outside of a dwelling of the owner unless properly restrained by a leash under control of a suitable person.

Section 11. Any violation of any provision of this Article shall be subject to the enforcement under Article I, Table 1 of the Rules & Regulations.

Section 12. In addition to any monetary penalty, violations of this rule may result in the Board seeking a court ordered injunction for removal of the animal(s) from Hartstene Pointe in accordance with CC&Rs, Article VII, Section 5. If an injunction is granted by the court, the Association may charge the costs of preventing or abating the violation to the offending Owner and add the amount thereof to his or her next regular annual or special assessment. Such costs may include a reasonable attorney's fee pursuant to CC&Rs Article IX, Section 2.

ARTICLE XI Wildlife Control

Section 1. All native wildlife and game birds at Hartstene Pointe are declared to be natural attributes for the pleasure and enjoyment of all who come to Hartstene Pointe. Any molestation, taking, hunting or killing thereof shall be deemed a violation.
The following three subsections define exceptions to the preceding two sentences.

- A. Any native non-domestic animal that becomes a nuisance or dangerous by threatening the safety of people and/or domestic animals, or causes ongoing damage or destruction to buildings or personal property may, in the judgment of the Board of Directors, be declared a Nuisance or Dangerous Animal. Washington Department of game rules and regulations defining such animals and the recommendations of Game and/or Wildlife Control Operators

shall be taken into consideration in making the decision to declare an animal dangerous or a nuisance. Only state Game officials or a Nuisance Wildlife Control Operator are permitted to trap or destroy an animal declared a danger or nuisance. Subsection A shall not be construed to override Washington law, if any, that applies to whether a non-domestic animal may be trapped or destroyed. Rather, it has the purpose of making clear that the HPMA and its Board is not constrained by the first two sentences of this section 1 from initiating steps, not inconsistent with Washington law, that may lead to the animal being trapped or destroyed.

- B. Any non-domestic animal suffering from a grave injury or illness, and/or one that demonstrates aggressive and dangerous behavior that poses a real and present danger to a person or persons is not protected under Section 1 of this rule. Destruction of an animal under exigent circumstances shall not be a violation of Section 1 above but individuals may be subject to Washington law regarding Game animals. While property owners are not encouraged to take such independent action it is recognized that under exigent circumstances a person may have no choice but to intervene for the safety of people.
- C. Extermination of non-native rats and the extermination of mice, cockroaches, carpenter ants and other destructive or dangerous species from private structure or HPMA buildings is permitted provided the method used is carefully considered to target specific pests and to minimize damage to other species.

Section 2. No person shall carry on his person or use any weapon, including without limitation, any firearm, gun, pistol, explosive, explosive device, bow, arrow or snare for the purpose of taking, hunting, killing or possessing wildlife. (See exception under Section 1.)

Section 3. With the exception of feeding birds, feeding practices that habituate wild or feral animals to seek food at a particular location are prohibited without written permission, granted only for good and exceptional reason, by the Board of Directors.

Section 4. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I.

ARTICLE XII

Property Use Registration and Delegation of Common Areas and Facilities

Section 1. Each Owner shall have a right and easement of enjoyment to the Common Areas per rules herein or posted including the Lease-Use areas.

Section 2. Lease-Use areas

Lease-Use Areas are those common areas and facilities set aside for exclusive use subject to availability and the execution of a lease/rental agreement with HPMA. These areas are defined as:

- A. Indian Cove Marina boat slips consisting of annual leases, subletting long-term leases, and transient moorage
- B. RV/boat storage areas
- C. Pea Patches
- D. And any other areas that may be designated as "Lease-Use" areas, subject to the rules and availability for each area.

Section 3. Tenants, guests and family members shall have full access to all non-leased common areas and facilities under the same rules, terms, and conditions as those that apply to owners in

accordance with Article VII herein. All tenants, guests and family members may use the transient moorage at Indian Cove Marina if the owner is present.

Section 4. In the owner's absence the owner may delegate his right to enjoyment of the common Lease-Use areas by registering their tenants, guests and family members.

- A. "Registered Occupant" is a non-owner who is a tenant, guest or family member who is using the owner's lot in their absence; and where the owner has so delegated the owner's right of enjoyment to all or specific Lease-Use areas to the Registered Occupant.
 - 1. Both the owner and the Registered Occupant shall sign a Delegation Assignment Agreement ("Agreement") and pay the associated assignment fee(s).
 - 2. The Agreement shall be limited to select Lease-Use areas and the owner will not be able to use the delegated Lease-Use area(s) as long as the Agreement is in place.
 - 3. The Registered Occupant shall agree to follow HPMA Rules and Regulations and shall receive a copy of the HPMA "CC&R's" and "Rules and Regulations", including information on fire safety.
 - 4. Per Agreement, the Registered Occupant may pay for the use of the leased common area(s) and the owner will guarantee any and all charges, fees, and fines delegated to the Registered Occupant.
 - 5. A Lease-Use area that is delegated to a Registered Occupant shall not be used by the owner
 - 6. The Registered Occupant may reserve Common Area facilities per Article VII herein.
- B. "Non-Registered Occupant" is a non-owner who is a tenant, guest or family member who is using the owner's lot in their absence; and where the owner has not registered the tenant.
 - 1. The Non-Registered Occupants shall not use the Lease-Use areas.
 - 2. The limitations imposed on Lease-Use areas for Non-Registered Occupants are due to the assigned term duration, the fee paid for exclusive use, the required knowledge of HPMA rules for use in these areas and the administrative time/expense/bookkeeping requirements which make it unfeasible to assign exclusive use in those areas to Non-Registered Tenants.

Section 5. Lease-Use Terms

- A. Leases or use agreements are available to all Lot Owners or their Registered Occupants subject to specific delegation and availability. Long-term moorage leases are only available to Lot Owners.
- B. All owners or their Registered Occupants shall sign use agreements/leases specific to each Lease-Use area. All Lessees' shall abide by the terms of the leases. If there is a conflict between the Rules & Regulations and the Lease Terms the Rules shall prevail.
- C. All Lease-Use areas are subject to standardized lease start and end dates as specified by HPMA.
- D. At the end of each term, all owners or their Registered Occupants requesting space will be granted space, if available.
- E. There are a limited number of Lease-Use areas. Each Lot Owner or their Registered Occupant is allowed 1 each RV Storage, 1 each of Boat Storage, 1 each Utility Trailer Storage, 2 each of Kayak

Storage Bays, and 2 each Pea Patch Plots, subject to availability. Each Lot or their Registered Occupant may exceed the allowable space limits only if there are available spaces after any wait lists are fulfilled and spaces remain available.

F. If demand is greater than available spaces; the current space holder will receive the first option to renew and shall exercise such option by renewing before the expiration date. There will be no grace period. First option to renew will not apply to all spaces for any Lot Owner(s) or their Registered Occupant(s) that have more spaces than defined in Section E above from the year prior. In such cases, when demand is greater than available space, the current lessee may only renew spaces so as not to exceed the limit as defined in Section E.

G. A wait list will be generated for all owners or their Registered Occupants requesting space that do not currently have space. If a space is not renewed and becomes available then the first person on the list gets first right to enter into an agreement. If they decline, it is then offered to the second person on the list and so-on until the space(s) are filled.

H. Lot Owners or their Registered Occupants shall own the vehicle that will occupy the space and shall not sublease. Lot Owners or their Registered Occupants who do not own a vehicle that will occupy the space may lease the space and shall within 30 days purchase or acquire a vehicle that will occupy the leased space. Lot Owners or their Registered Occupants that sell or do not own a vehicle for the leased space will forfeit the space and no refunds shall be provided.

I. Lease-Use holders are subject to the rules and terms as posted for each area.

Section 6. Sponsoring lot owners shall assume financial responsibility for any damage to the common area and Pointe facilities and the cost of violations of the rules and regulations incurred and not paid by its tenants, guests or family members.

Section 7. Sponsoring lot owners shall be notified of any rule violation or conduct qualified as a nuisance attributed its tenants, guests or family members.

Section 8. HPMA may suspend access to Common Area facilities and Lease-Use areas if assessments remain unpaid and/or violations remain unabated which includes owners, tenants, guest and family members.

Section 9. Special reference is made to ARTICLE IX, Sections 4, 5 and 6 herein which contains a prohibition of outdoor fires.

Section 10. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article 1.

ARTICLE XIII

Use of Indian Cove and Lagoon Moorage Facilities

Section 1. HARBORMASTER. The harbormaster, duly appointed by the Manager, and acting under the direction of both the Manager and Moorage Committee, shall have the authority and the duties assigned by the Manager in consultation with the Moorage Committee.

Section 2. VESSEL OF RECORD

- A. Lessee shall keep the Harbormaster informed of the description of the vessel moored at the slip. Such description shall consist of the following information: name of vessel, registration number, type of vessel, (sail/power), length, beam, and drat. Vessel dimensions must comply with those dictated by the slip lease.

B. No vessel other than the "vessel of record" shall be placed in the slip unless otherwise authorized by the Harbormaster. If deemed necessary, acceptable documents to substantiate proof of ownership may be:

1. Bill of Sale, or
2. Any two or more of the following documents
 - (a) Executed use tax return;
 - (b) Coast Guard or State registration or Documentation;
 - (c) Insurance papers showing slip lessee as loss payee.

Section 3. IDENTITY. All authorized visitors or guests shall complete the registration form and identity card upon arrival, placing the identity card in a visible location on the vessel and the registration form in the mailbox at the marina.

Section 4. GUESTS. All persons using the marina facilities (moorage at Indian Cove and the lagoon) are subject to and bound by the Articles of Incorporation, its Bylaws, the Declaration of Covenants, Conditions and Restrictions and Rules and Regulations applicable to Hartstene Pointe and the slip leases. The Harbormaster will allow use of the Transient Moorage Space only to Property Owners or contract purchasers of property at Hartstene Pointe and their guests. Moorage is not available to anyone renting property at Hartstene Pointe. Fees for transient moorage are billed to the property owner and not collected at the Marina.

Section 5. USE OF SLIP AND MOORAGE.

- A. Slips shall be used for pleasure purposes only.
- B. All vessels connected to electrical power must use the approved 30 amp power cord to reduce electrolysis.
- C. All children must wear life vests while on the dock. Extreme caution should be taken in winter when dock surfaces are slippery. All dogs must be on leashes while on the dock. Dock carts should be returned to their storage location in the parking lot after each use. The entire marina is a NO WAKE ZONE.

Section 6. APPEARANCE OF SLIP. The lessee shall keep the slip and the adjacent common area in a neat, clean and orderly manner and shall refrain from using any portion thereof for any dumping, discharge or storage or from encroaching or permitting any portion of his/her vessel to encroach on any of the common area. No alteration, addition, improvement or deletion to any part of the adjacent piers or walkways shall be made without the express written approval of the Association.

Section 7. HARBORMASTER ACCESS TO VESSEL. Lessee grants the Harbormaster or his/her agent authority and free access to board lessee's vessel and to move the vessel as needed. However, such authority and free access creates no responsibility on the part of HPMa or its agents for the vessel, its tackle, apparel, fixtures, equipment and furnishings or any other property of the lessee or for the lessee or the lessee's invitees, social guests, family, employees or agents.

Section 8. FISHING FROM THE DOCK. Fishing will be permitted in areas designated by the Harbormaster.

Section 9. LOADING AND UNLOADING AREAS. Use of the red areas is subject to the control of the Harbormaster. Normal use should be restricted to thirty (30) minutes or less for each arrival or departure.

Section 10. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I.

ARTICLE XIV

Sanitary Sewage Disposal Compliance by Dwelling Vehicles (Travel Trailers, Campers, Motor Homes and Tent Trailers)

Section 1. Dwelling vehicle owners must apply to the Hartstene Pointe Water-Sewer District for a permit to obtain Sanitary Sewer Service while such vehicle is on a platted residential lot, except as provided in Section 2 herein.

Section 2. Dwelling vehicles with self-contained sanitary facilities, wherein no disposal of sewage or waste water will be made while on a platted residential lot or on the common area, may be used on a platted residential lot having no connection to the central community system for a period not to exceed two weeks and/or a weekend or holiday, and/or during construction of a dwelling and with the authorization of the HPMa Board of Directors.

- A. After such use, these vehicles may not be stored on a platted residential lot at Hartstene Pointe.

Section 3. The permit issued to park a dwelling vehicle on a residential lot must indicate whether or not a fully self-contained sanitary sewage system is part of the dwelling vehicle equipment and that it is in working order. The Patrol Officer will determine upon issuance of the permit if such equipment is on the vehicle and if it is operable. Upon such determination, the Patrol Officer will issue a permit to park on a residential lot. The form of said permit shall be approved by the Board of Directors.

Section 4. Failure to furnish information regarding the sanitary sewage system on a vehicle, or violation of the Covenants by disposal of sewage on a platted residential lot or upon any part of the common area, will give cause for revocation of a permit to park a dwelling vehicle on the lot for such period of time as the Board of Directors shall direct after a full hearing on all facts and circumstances.

Section 5. Multiple sewer connections will be reported to the Mason County Department of General Services and all sanitary sewage disposal violations will be reported to the County Health Department.

- A. Owners are responsible for removing all but one sewer connection on any platted residential lot.

Section 6. Special reference is made here to ARTICLE IX, Section 4 & 6 in which the prohibition of outdoor fires is set forth.

Section 7. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I.

ARTICLE XV

Property Rental Registration

Section 1. All property owners who lease or rent their property (either short term or long term), are required to register as a Host or Landlord and to register their renters or lessees, with HPMa. Registration as a Host/Landlord will be on the Registration of Intent to Use Property as a Rental form. In addition, STR host will be required to complete the Additional Information Requirements for Short Term Rentals form. These forms are available in the HPMa office and on Condo Control

for download. Registration of guest and/or tenants will be conducted online through Condo Control.

Section 2. Property owners are required to post current copies of all Hartstene Pointe Rules and Regulations, including special reference to prohibitions of outdoor fires and fireworks in a conspicuous place within the premises and follow all applicable State, County and Local laws.

Section 3. Property owner shall assume financial responsibility for any damage to the common area and Pointe facilities and the cost of violations of the Rules and Regulations incurred by his/her tenants or renters.

Section 4. All renters are required to abide by the HPMA Rules and Regulations with special attention to Article IV, Section 21: Right to Use and Enjoyment and Article IX: Personal Conduct. Property owners shall be notified of any violation(s) of the Rules and Regulations attributed to person or persons associated with the rented or leased property.

Section 5. Any violation of any of the provisions of this Article shall be deemed a violation subject to the enforcement provisions of Article I and Fines per Table 1.

ARTICLE XVI

The compilation of Rules and Regulations adopted herein by the Board of Directors includes the readopting and republication of only those of the previous rules and regulations that are expressly contained herein. Accordingly, this compilation shall supersede any and all previous rules and regulations heretofore adopted.

Table 1
HPMA SCHEDULE OF PENALTIES FOR VIOLATION OF RULES AND REGULATIONS
ARTICLE III - ARCHITECTURAL CONTROL

VIOLATION	PENALTY
Commencement or completion of work without a Permit:	
New Construction and Major Remodel	\$500 Must Stop Work and Apply for a Permit within 30 days. Work cannot recommence before valid HPMA Permit is issued. If not corrected, then a \$25 per day fine until corrected.
Minor Remodel	\$250 Must Stop Work and Apply for a Permit within 30 days. Work cannot recommence before valid HPMA Permit is issued. If not corrected, then a \$25 per day fine until corrected.
Multi Permit	\$100 Must Stop Work and Apply for a Permit within 30 days. Work cannot recommence before valid HPMA Permit is issued. If not corrected, then a \$5 per day fine until corrected.
If permit is not approved:	Any work completed without a valid permit must be removed and/or restored back to original state prior to commencement of work. The per day fines as defined above continue until restoration is completed.
Commencement of Work without Non-Permit Work Notice	\$50
Failure to Post the Issued Permit	\$25
Failure to complete project w/in designated time frame: New	\$25 fine per day until completion

Construction & Major Remodel	
Failure to complete project w/in designated time frame: Minor remodels, decks, sheds & fences	\$5 fine per day until completion
Work done in Common Area without approved contractor	\$100
Commencement of work beyond approved permit	A fine up to \$100 and must stop work not included in permit and apply for a Change Order or Permit within 30 days, whichever is applicable. Work cannot recommence before Change Order or a valid HPMA Permit is issued. If not corrected, then a fine of up to \$100 per day fine until corrected.

ARTICLE IV LAND USE RESTRICTIONS

VIOLATION	PENALTY
Violation of Common Area Restrictions and/or damage to Common Area/Facilities	A fine of up to \$1000 plus cost for removal and/or of restoration. If not corrected within 30 days, a fine of up to \$100 fine per day will be issued until corrected.
Violation of Signs and Flag Restrictions	\$25 if not corrected within 5 days \$5 Per Day Until Corrected.
Violation for Dumping Trash or Debris over Bank	\$500 Plus Cost of Clean-up. If not corrected within 30 days a \$10 fine per day will be issued until corrected.
Violation of Garbage Rules	\$50 Plus Cost of Dump Fees and/or clean-up
Specific to Construction Debris and Hazardous Waste	1st Offense - \$50 2nd Offense - \$200 plus cost of dump fees
Drainage Violations	If not corrected within 30 days a \$25 fine per day will be issued until corrected
Common Area Parking Violations	1st Offense - \$25 2nd Offense - \$50 3rd - \$100 If not corrected within 30 days a \$10 fine per day will be issued until corrected and/or impounded at owner's expense.
Common Area Storage and Exclusive Use Violation:	
Storage of RV/Boats without a permit	1st Offense - \$100 2nd Offense - \$200 plus the vehicle will be towed at owner's expense
Stored without storage sticker	1st offense - \$25 and a new sticker will be applied by patrol
Vehicles in Disrepair/Inoperable	1st Offense - \$100 2nd Offense - \$200
Stored Vehicle with standing water creating mosquito habitat	1st Offense - Warning, must be corrected in 15 days 2nd Offense \$50 plus cost for HPMA to drain 3rd Offense \$50 and Permit revoked – with no refund If above violations are not corrected within 15 days a \$10 fine per day will be issued until corrected
Storage of Kayaks/Canoes: Unlike RV/Boats that are registered with the state, we have no way to identify who owns a stored	

Kayak/Canoe. Therefore, the fines will vary accordingly: With no sticker applied to Kayak/Canoe they will be impounded, and the following will apply: No permit purchase	
Permit purchased not applied	FINE \$50 includes purchase of permit and impound fee
Violation of RV's Parked on Platted Residential Lot Restrictions	FINE \$20 impound fee, plus \$5 if new permit sticker needed
Violation of Storage of boats, Boat Trailers, Utility Trailers or Kayaks on Platted Residential Lots:	1st Offense - \$25 2nd Offense - \$200 If violations are not corrected within 30 days a \$10 fine per day will be issued until corrected.
Without a Permit	1st Offense - \$25 2nd Offense - \$200 If violations are not corrected within 30 days a \$10 fine per day will be issued until corrected.
Violation for Storing Boat/Trailer or Utility Trailer at Island House Parking	1st Offense - \$25 2nd Offense - \$75 If violations are not corrected within 10 days a \$10 fine per day will be issued until corrected.
Violation of Screening and/or Tarp Restrictions	1st Offense - \$25 2nd Offense - \$50 If violations are not corrected within 30 days a \$10 fine per day will be issued until corrected.
Violation - Fuel/Propane Tanks on Common Area	\$200 plus cost of removal and restoration. If violations are not corrected within 5 days a \$10 fine per day will be issued until corrected.
Violation of Landscaping Restrictions on Platted Residential Lots	Refer to Fines Article III, Architectural Controls
Violation for Clearing Private Platted Residential Lot without a Permit	\$1000 Plus Fines for working without a Permit - Article III, Architectural Controls
Violations of Management/Maintenance of Vegetation on Private Lots and Common Areas: Plus:	Private Lots - \$100 Common Area - \$200
Failure to Remove Vegetative Debris	FINE \$500 plus cost of clean up
Tree Cutting or Topping in Violation of the Pertinent Rules	FINE per Tree \$500 for trees less than 6 inches in diameter DBH and \$1000 for trees greater than 6 inches in DBH
Brush trimming in violation of the	FINE \$100 and replacement

pertinent rules	
Tree limbing in violation of the pertinent rules	FINE \$200 Plus Fines for working without a Permit - Article III, Architectural Controls, if applicable

ARTICLE V BUILDING RESTRICTIONS

VIOLATION	PENALTY
Exterior Finishes Violation	Refer to Fines Article III, Architectural Controls If violations are not corrected within 30 days a \$5 Fine Per Day Until Corrected
Construction Clean-up Violation	\$200 plus cost of removal. If violations are not corrected within 5 days a \$10 fine per day will be issued until corrected.
Setback requirements Violated	\$200 plus Refer to Fines Article III, Architectural Controls, if applicable If violations are not corrected within 30 days a \$25 Fine Per Day Until Corrected
Fence Violations	Refer to Fines Article III, Architectural Controls If violations are not corrected within 30 days a \$10 Fine Per Day Until Corrected
Driveway Entrances Violation	Refer to Fines Article III, Architectural Controls If violations are not corrected within 30 days a \$10 Fine Per Day Until Corrected
Exterior Lighting Violation	\$50 plus Refer to Fines Article III, Architectural Controls, if applicable If violations are not corrected within 30 days a \$10 Fine Per Day Until Corrected
Dumping Construction Debris in Dumpsters	1st Offense - \$50 2nd Offense - \$200 plus cost of dump fees
Violations for Upkeep of Private Buildings, Structures	Fine \$100
Landscaped Grounds and Exterior Appearance	If violations are not corrected within 30 days a \$20 Fine Per Day Until Corrected

ARTICLE VI TRAFFIC CONTROL

VIOLATION	PENALTY
Vehicle Operated in a Careless Manner (including not yielding to pedestrians)	\$200
Driving Vehicles (including Golf Carts) without Valid License	1st Offense - \$50 2nd Offense - \$100
Driving Motor Vehicle, Bicycle or other self-propelled vehicle on Trails or Beaches	\$50
Exceeding Posted Speed Limit: Over 20 mph to 25 mph Over 25 mph Over 35 mph	\$50 \$100 \$250
Vehicle operating w/o adequate muffler or lights	\$25

ARTICLE VII GATE CONTROL

VIOLATION	PENALTY
Key Cards Found Delegated to an Improper User	\$250
Remote Control programmed to non-registered user	\$250 Plus Deactivate Remote

Gate Entry After Hours	\$250
Lost or Stolen Cards not reported to HPMA	\$50
Tampering with Gate system	\$500 FINE plus repair costs
Unauthorized entry and/or trespassing	REFER Mason County Sheriff

**ARTICLE VIII
CLUBHOUSE-POOL-TENNIS/SPORT COURTS-PICNIC AREAS-FITNESS CENTER**

VIOLATION	PENALTY
All Common Areas: Clubhouse – Pool – Tennis/Sport Courts – Picnic Areas – Fitness Center Violations	1st Offense – \$25 2nd Offense \$50 3rd Offense \$100 and Banned from Use of Common Areas (Site Specific) for Remainder of the Current Year

ARTICLE IX PERSONAL CONDUCT

VIOLATION	PENALTY
Noise Complaints	1st Offense Warning 2nd Offense \$200 3rd Offense \$500 thereafter (Resets each calendar year (January 1))
Common Area Violations Fire Prevention Rules:	
No Smoking/Vaping	1st Offense \$50 2nd Offense \$100 3rd Offense \$200 4th Offense \$400 thereafter (Resets each calendar year (January 1))
Open Fires/Flame Devices	\$1000
Fires/Cooking during Burn Ban	\$1000
Fireworks	\$1000
Private Lot Fires and Open Flames Devices Violations	\$1000
Third false alarm by a home sound security system	\$100

ARTICLE X PET OWNERSHIP AND CONTROL

VIOLATION	PENALTY
Pet Ownership and Control Violations:	
Failure for pet wearing identification tag	\$25
Dogs Off Leash on Leashed Common Areas	1st Offense – \$25 per dog 2nd Offense - \$50 per Dog 3rd Offense - \$500 per Dog 4th Offense – \$1000 and Dog(s) Banned from all Common Areas
Failure to collect and dispose of pet’s feces	1st Offense – \$25 per dog 2nd Offense - \$50 per Dog 3rd Offense - \$500 per Dog 4th Offense – \$1000 and Dog(s) Banned from all Common Areas
Pet Noise Nuisance Violations	1st Offense – Given a Warning 2nd Offense \$50 3rd Offense \$100 4th Offense \$250 thereafter each (Resets each calendar year (January 1))
Pet found guilty of attack on another pet	\$100
Pet found guilty of attack on human	\$500
Pet’s determined to be Nuisance or Vicious and in	

violation of Section 10 restrictions:	
Nuisance	\$500 per occurrence
Vicious Animal	\$1000 per occurrence
Using Lot for Breeding Animals	\$500 plus If violations are not corrected within 30 days a \$5 Fine Per Day Until Corrected

ARTICLE XI WILDLIFE CONTROL

VIOLATION	PENALTY
Feeding Wildlife	1st offense warning 2nd offense - \$50
Hunting, taking, killing or possessing wildlife. exceptions being as allowed by law for nuisance pests on owner's private lot.	\$1000 and REFER to state wildlife authorities

ARTICLE XIII USE OF INDIAN COVE AND LAGOON MOORAGE FACILITIES

VIOLATION	PENALTY
Violation of Marina Rules, terms of Long-Term Leases, Subleases or Transient Moorage leases or usage.	1st violation: \$50 2nd and additional violations of the same or similar rule in any 6-month period: \$100 If violations are not corrected within 15 days a \$20 Fine Per Day Until Corrected
Repeated non-compliance of Marina Rules or Long-Term Lease or Sublease terms may result in termination of such leases.	

ARTICLE XV RENTAL PROPERTY REGISTRATION

VIOLATION	PENALTY (per occurrence) After one-time warning
Failure to accurately register as host/landlord and continue to have renters	\$500
Exceeding the maximum occupancy for renters (Mason County defines maximum occupancy as 2 persons per bedroom plus 2 persons per STR)	\$250
Failure to accurately register renters with HPMA through Condo Control prior to arrival	\$250